Transnet Rail Infrastructure Manager

an Operating Division **TRANSNET SOC LTD**

[Registration Number 1990/000900/30]

REQUEST FOR QUOTATION (RFQ)

FOR THE CONSTRUCTION AND REHABILITATION OF DRAINAGE INFRASTRUCTURE AT LEEUBOS ELECTRICAL SUBSTATION UNDER THE KRUGERSDORP DEPOT

RFQ NUMBER	**: TRIM/2026/09/2227/11458/RFQ**
ISSUE DATE	**: 23 OCTOBER 2026**
COMPULSORY TENDER CLARIFICATION MEETING	**: 03 NOVEMBER 2026**
CLOSING DATE	**: 23 NOVEMBER 2026**
CLOSING TIME	**: 10:00am**
TENDER VALIDITY PERIOD	**: 12 weeks from closing date**

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

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T1.1 TENDER NOTICE AND INVITATION TO TENDER

SECTION 1: NOTICE TO TENDERERS

1. INVITATION TO TENDER

Responses to this Tender [hereinafter referred to as a **Tender**] are requested from persons, companies, close corporations or enterprises [hereinafter referred to as a Tenderer].

DESCRIPTION	Construction and Rehabilitation of Drainage Infrastructure at Leeubos Electrical Substation under the Krugersdorp Depot
TENDER DOWNLOADING	This Tender may be downloaded directly from the National Treasury eTenders Publication Portal at www.etenders.gov.za and the Transnet e-Supplier Portal at https://esupplierportal.transnet.net/portal/) (please use Google Chrome to access Transnet link) FREE OF CHARGE.
COMPULSORY TENDER CLARIFICATION MEETING	A Compulsory Tender Clarification Meeting will be conducted at **Leeubos area, adjacent to the R502 between Orkney and Leeudoringstad in the Northwest Province, with GPS coordinates: (27º12'12.80" S 26º18'28.55" E)** on the **03 November 2026** at **10:00am [10 O'clock]** for a period of ± 2 (two) hours. [Tenderers to provide own transportation and accommodation]. The Compulsory Tender Clarification Meeting will start punctually, and information will not be repeated for the benefit of Tenderers arriving late. **A Site visit/walk will take place; tenderers are to note**: • Tenderers are required to wear safety shoes, goggles, long sleeve shirts, high visibility vests and hard hats. • Tenderers without the recommended PPE will not be allowed on the site walk. • Tenderers and their employees, visitors, clients and customers entering Transnet Offices, Depots, Workshops and Stores will have to undergo breathalyser testing. • All forms of firearms are prohibited on Transnet properties and premises. • The relevant persons attending the meeting must ensure that their identity documents, passports or driver's licences are on them for inspection at the access control gates. • Certificate of Attendance in the form set out in the **Returnable Schedule T2.2-01** hereto must be completed and submitted with your Tender as proof of attendance is required for a **compulsory** site meeting and/or tender briefing. **Tenderers are required to bring this Returnable Schedule T2.2-01 to the Compulsory Tender Clarification Meeting to be signed by the *Employer's* Representative.**

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CLOSING DATE	**10:00 am** on **23 November2026** Tenderers must ensure that tenders are uploaded timeously onto the system. **If a tender is late, it will not be accepted for consideration**.

2. TENDER SUBMISSION

Transnet has implemented a new electronic tender submission system, the e-Tender Submission Portal, in line with the overall Transnet digitalization strategy where suppliers can view advertised tenders, register their information, log their intent to respond to bids and upload their bid proposals/responses on to the system.

a) The Transnet e-Tender Submission Portal can be accessed as follows:

Log on to the Transnet e-Supplier Portal website https://esupplierportal.transnet.net/portal/);

- Click on "ADVERTISED TENDERS" to view advertised tenders;
- Click on "SIGN IN/REGISTER – for bidder to register their information (must fill in all mandatory information);
- Click on "SIGN IN/REGISTER" - to sign in if already registered;
- Toggle (click to switch) the "Log an Intent" button to submit a bid;
- Submit bid documents by uploading them into the system against each tender selected.
- **Tenderers are required to ensure that electronic bid submissions are done at least a day before the closing date to prevent issues which they may encounter due to their internet speed, bandwidth or the size of the number of uploads they are submitting. Transnet will not be held liable for any challenges experienced by bidders as a result of the technical challenges. Please do not wait for the last hour to submit. A Tenderer can upload 30mb per upload and multiple uploads are permitted.**

b) The tender offers to this tender will be opened as soon as possible after the closing date and time. Transnet shall not, at the opening of tenders, disclose to any other company any confidential details pertaining to the Tender Offers / information received, i.e. pricing, delivery, etc. The names and locations of the Tenderers will be divulged to other Tenderers upon request.

c) Submissions must not contain documents relating to any Tender other than that shown on the submission.

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3. CONFIDENTIALITY

All information related to this RFQ is to be treated with strict confidentiality. In this regard Tenderers are required to certify that they have acquainted themselves with the Non-Disclosure Agreement. All information related to a subsequent contract, both during and after completion thereof, will be treated with strict confidence. Should the need however arise to divulge any information gleaned from provision of the Works, which is either directly or indirectly related to Transnet's business, written approval to divulge such information must be obtained from Transnet.

4. DISCLAIMERS

Tenderers are hereby advised that Transnet is not committed to any course of action as a result of its issuance of this Tender and/or its receipt of a tender offer. In particular, please note that Transnet reserves the right to:

4.1. Award the business to the highest scoring Tenderer/s unless objective criteria justify the award to another tenderer.

4.2. Not necessarily accept the lowest priced tender or an alternative Tender;

4.3. Go to the open market if the quoted rates (for award of work) are deemed unreasonable;

4.4. Should the Tenderers be awarded business on strength of information furnished by the Tenderer, which after conclusion of the contract is proved to have been incorrect, Transnet reserves the right to terminate the contract;

4.5. Request audited financial statements or other documentation for the purposes of a due diligence exercise;

4.6. Not accept any changes or purported changes by the Tenderer to the tender rates after the closing date;

4.7. Verify any information supplied by a Tenderer by submitting a tender, the Tenderer/s hereby irrevocably grant the necessary consent to the Transnet to do so;

4.8. Conduct the evaluation process in parallel. The evaluation of Tenderers at any given stage must therefore not be interpreted to mean that Tenderers have necessarily passed any previous stage(s);

4.9. Unless otherwise expressly stated, each tender lodged in response to the invitation to tender shall be deemed to be an offer by the Tenderer. The Employer has the right in its sole and unfettered discretion not to accept any offer.

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4.10. Not be held liable if tenderers do not provide the correct contact details during the clarification session and do not receive the latest information regarding this RFQ with the possible consequence of being disadvantaged or disqualified as a result thereof.

4.11. Transnet reserves the right to exclude any Tenderers from the tender process who has been convicted of a serious breach of law during the preceding 5 [five] years including but not limited to breaches of the Competition Act 89 of 1998, as amended. Tenderers are required to indicate in tender returnable [on T2.2-12], **[Breach of Law]** whether or not they have been found guilty of a serious breach of law during the past 5 [five] years.

4.12. Transnet reserves the right to perform a risk analysis on the preferred tenderer to ascertain if any of the following might present an unacceptable commercial risk to the employer:

- *unduly high or unduly low tendered rates or amounts in the tender offer;*
- *contract data of contract provided by the tenderer; or*
- *the contents of the tender returnables which are to be included in the contract.*

5. Transnet will not reimburse any Tenderer for any preparatory costs or other work performed in connection with this Tender, whether or not the Tenderer is awarded a contract.

6. NATIONAL TREASURY'S CENTRAL SUPPLIER DATABASE

Tenderers are required to self-register on National Treasury's Central Supplier Database (CSD) which has been established to centrally administer supplier information for all organs of state and facilitate the verification of certain key supplier information. The CSD can be accessed at https://secure.csd.gov.za/. Tenderers are required to provide the following to Transnet in order to enable it to verify information on the CSD:

Supplier Number..... and Unique registration reference number..... (Tender Data)

Transnet urges its clients, suppliers and the general public

to report any fraud or corruption to

TIP-OFFS ANONYMOUS: 0800 003 056 OR Transnet@tip-offs.com

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T1.2 TENDER DATA

The conditions of tender are the Standard Conditions of Tender as contained in Annex C of the CIDB Standard for Uniformity in Engineering and Construction Works Contracts. The Standard for Uniformity in Construction Procurement was first published in Board Notice 62 of 2004 in Government Gazette No 26427 of 9 June 2004. It was subsequently amended in Board Notice 67 of 2005 in Government Gazette No 28127 of 14 October 2005, Board Notice 93 of 2006 in Government Gazette No 29138 of 18 August 2006, Board Notice No 9 of 2008 in Government Gazette No 31823 of 30 January 2009, Board Notice 86 of 2010 in Government Gazette No 33239 of 28 May 2010, Board Notice 136 of 2015 in Government Gazette 38960 of 10 July 2015 and Board Notice 423 of 2019 in Government Gazette No 42622 of 8 August 2019.

This edition incorporates the amendments made in Board Notice 423 of 2019 in Government Gazette 42622 of 8 August 2019. (see www.cidb.org.za).

The Standard Conditions of Tender make several references to Tender data for detail that apply specifically to this tender. The Tender Data shall have precedence in the interpretation of any ambiguity or inconsistency between it and the Standard Conditions of Tender.

Each item of data given below is cross-referenced in the left-hand column to the clause in the Standard Conditions of Tender to which it mainly applies.

Clause		Data
C.1.1	The *Employer* is	**Transnet SOC Ltd** **(Reg No. 1990/000900/30)**
C.1.2	The tender documents issued by the *Employer* comprise:	
	Part T: The Tender	
	Part T1: Tendering procedures	T1.1 Tender notice and invitation to tender T1.2 Tender data
	Part T2: Returnable documents	T2.1 List of returnable documents T2.2 Returnable Schedules
	Part C: The contract	
	Part C1: Agreements and contract data	C1.1 Form of offer and acceptance C1.2 Contract data (Part 1 & 2) C1.3 Form of Securities
	Part C2: Pricing data	C2.1 Pricing instructions C2.2 Bill of Quantities
	Part C3: Scope of work	C3.1 Works Information

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	Part C4: Site information	C4.1 Site information
C.1.4	The Employer's agent is:	Technical Buyer
	Name:	Dineo Noko
	Address:	No.1 Anvil Road, Admin Building, Isando, 1600
	Tel No.	011 308 1344
	E – mail	dineo.noko@transnet.net

C.2.1 Only those tenderers who satisfy the following eligibility criteria are eligible to submit tenders:

1. Eligibility with regards to attendance at the compulsory clarification meeting:

An authorised representative of the tendering entity or a representative of a tendering entity that intends to form a Joint Venture (JV) must attend the compulsory clarification meeting in terms C2.7

2. Eligibility in terms of the Construction Industry Development Board:

a) Only those tenderers who are registered with the CIDB, or are capable of being so prior to the evaluation of submissions, in a contractor grading designation equal to or higher than a contractor grading designation determined in accordance with the sum tendered or a value determined in accordance with Regulation 25 (1B) or 25(7A) of the Construction Industry Development Regulations, designation of **1CE or higher** class of construction work, are eligible to have their tenders evaluated.

b) Joint Venture (JV)
Joint ventures are eligible to submit tenders subject to the following:
1. every member of the joint venture is registered with the CIDB;
2. the combined Contractor grading designation calculated in accordance with the Construction Industry Development Regulations is equal to or higher than a Contractor grading designation determined in accordance with the sum tendered for a **1CE or higher** class of construction work or a value determined in accordance with Regulation 25(1B) or 25(7A) of the Construction Industry Development Regulations
The tenderer shall provide a certified copy of its signed joint venture agreement

C.2.12 No alternative tender offers will be considered.

C.2.13.3 Each tender offer shall be in the **English Language.**

C.2.13.5 C2.15.1 The *Employer*'s details and identification details that are to be shown on each tender offer are as follows:

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	Identification details:	The tender documents must be uploaded with: ▪ Name of Tenderer: (insert company name) ▪ Contact person and details: (insert details) ▪ The Tender Number: TRIM/2026/09/2227/11458/RFQ ▪ The Tender Description: Construction and Rehabilitation of Drainage Infrastructure at Leeubos Electrical Substation under the Krugersdorp Depot Documents must be marked for the attention of: ***Employer's Representative*: Dineo Noko**
C.2.13.9	Telephonic, telegraphic, facsimile or e-mailed tender offers will not be accepted.	
C.2.15	The closing time for submission of tender offers is: Time: **10:00am** on the **23 November 2026.** Location: The Transnet e-Supplier Portal: (https://esupplierportal.transnet.net/portal/) **NO LATE TENDERS WILL BE ACCEPTED**	
C.2.16	The tender offer validity period is **12 weeks** after the closing date. Tenderers are to note that they may be requested to extend the validity period of their tender, on the same terms and conditions, if Transnet's internal evaluation and governance approval processes has not been finalised within the validity period.	
C.2.23	The tenderer is required to submit with this tender: 1. A valid Tax Clearance Certificate issued by the South African Revenue Services. **Tenderers also to provide Transnet with a TCS PIN to verify Tenderers compliance status**. 2. A **valid B-BBEE Certificate** from a Verification Agency accredited by the South African Accreditation System [**SANAS**], or a **sworn affidavit** confirming annual turnover and level of black ownership in case of all EMEs and QSEs with 51% black ownership or more together with the tender; 3. Proof of registration on the Central Supplier Database; 4. Letter of Good Standing with the Workmen's compensation fund by the tendering entity or separate Letters of Good Standing from all members of a newly constituted JV. 5. A fully completed Annex G Compulsory Enterprise Questionnaire **Note:** Refer to Section T2.1 for List of Returnable Documents	

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C.3.11. Only tenders that are Administratively and Substantively Responsive will be evaluated further in accordance with the 80/20 preference points systems as described in Transnet Preferential Procurement Policy

80 where the financial value of one or more responsive tenders received have a value equal to or below R50 million, inclusive of all applicable taxes,

and

Up to 100 minus W_1 tender evaluation points will be awarded to tenderers who complete the preferencing schedule and who are found to be eligible for the preference claimed. **Should the BBBEE rating not be provided, tenderers with no verification will score zero points for preferencing.**

Note: Transnet reserves the right to carry out an independent audit of the tenderer's scorecard components at any stage from the date of close of the tenders until completion of the contract.

Specific Goals	Points Allocation
Price	80
Preferences (Specific Goals)	
B-BBEE Level of contributor (1 or 2)	10
+50% Black Youth Owned	10
Non-Compliant and/or B-BBEE Level 3-8 contributors	0
TOTAL SCORE:	**100**

The following Table represents the evidence to be submitted for claiming preference points for applicable specific goals in a particular tender:

Specific Goals	Acceptable Evidence
B-BBEE	B-BBEE Certificate / Sworn-Affidavit B-BBEE Certificate (in case of JV, a consolidate scorecard will be accept) as per DTIC guidelines
+50% Black Youth Owned Entities	Certified copy of ID Documents of the Owners and B-BBEE Certificate / Sworn- Affidavit / B-BBEE CIPC Certificate (in case of JV, a consolidated scorecard will be accepted) as per DTIC guideline

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C.3.13 Tender offers will only be accepted if:

1. The tenderer or any of its directors/shareholders is not listed on the Register of Tender Defaulters in terms of the Prevention and Combating of Corrupt Activities Act of 2004 as a person prohibited from doing business with the public sector;

2. the tenderer does not appear on Transnet's list for restricted tenderers and National Treasury's list of Tender Defaulters;

3. the tenderer has fully and properly completed the Compulsory Enterprise Questionnaire and there are no conflicts of interest which may impact on the tenderer's ability to perform the contract in the best interests of the Employer or potentially compromise the tender process and persons in the employ of the state.

4. Transnet reserves the right to award the tender to the tenderer who scores the highest number of points overall, unless there are **objective criteria** which will justify the award of the tender to another tenderer. Objective criteria include but are not limited to the outcome of a due diligence exercise to be conducted. The due diligence exercise may take the following factors into account inter alia;

   the tenderer:

   a) is not under restrictions, or has principals who are under restrictions, preventing participating in the employer's procurement,

   b) can, as necessary and in relation to the proposed contract, demonstrate that he or she possesses the professional and technical qualifications, professional and technical competence, financial resources, equipment and other physical facilities, managerial capability, reliability, experience and reputation, expertise and the personnel, to perform the contract,

   c) has the legal capacity to enter into the contract,

   d) is not insolvent, in receivership, under Business Rescue as provided for in chapter 6 of the Companies Act, 2008, bankrupt or being wound up, has his affairs administered by a court or a judicial officer, has suspended his business activities, or is subject to legal proceedings in respect of any of the foregoing,

   e) complies with the legal requirements, if any, stated in the tender data and

   f) is able, in the option of the employer to perform the contract free of conflicts of interest.

C.3.17 The number of paper copies of the signed contract to be provided by the Employer is 1 (one).

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T2.1 List of Returnable Documents

2.1 Returnable Schedules:

2.1.1 Eligibility with regards to attendance at the compulsory clarification meeting:

T2.2-01 Certificate of Attendance

General:

T2.2-02 Proof of Previous Experience

T2.2-03 Availability of Equipment and Other Resources

T2.2-04 Authority to submit tender

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T2.2-07 CIDB SFU Annex G Compulsory Questionnaire

T2.2-08 Non-Disclosure Agreement

T2.2-09 Supplier Declaration Form

T2.2-10 RFQ Declaration Form

T2.2-11 Service Provider Integrity Pact

T2.2-12 RFQ – Breach of Law

T2.2-13 Agreement in terms of (POPIA)

T2.2-14 Certificate of Acquaintance with Tender Document

T2.2-15 Supplier Code of Conduct

2.2 C1.1 Offer portion of Form of Offer & Acceptance

2.3 C1.2 Contract Data Part Two (Data by the Contractor)

2.4 C2.1 Pricing (Bill of Quantities)

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T2.2-01: Eligibility Criteria Schedule:

Certificate of Attendance at Tender Clarification Meeting

This is to certify that

BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD (Company Name)

Represented by: LESEGO THABO SEEPE (Name and Surname)

Was represented at the compulsory tender clarification meeting

Held at:	Leeubos area, R502 between Orkney and Leeudoringstad (North West)	
On (date)	04/11/2026	Starting time: 10:00

Particulars of person(s) attending the meeting:

Name LESEGO THABO SEEPE Signature LTSeepe

Capacity Operations Director

Attendance of the above company at the meeting was confirmed:

Name Signature

For and on Behalf of the ***Employers Agent.*** Date

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T2.2-02: Proof of Previous Experience

Note to tenderers:

Contractors should provide two (02) completion certificates or written reference in a letterhead of similar scope of work (SoW) that has been done before.

Two completion certificates with reference letters attached:

1. *Matlosana-West Local Municipality (fictional) - Construction of concrete-lined stormwater channels and 300 mm pipe culverts (R 1 284 000.00)*
2. *Bophirima Roads Agency (fictional) - Rehabilitation of road-side V-drains and 450 mm culvert crossings (R 742 500.00)*

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MATLOSANA-WEST LOCAL MUNICIPALITY (FICTIONAL)

Certificate of completion (specimen layout)

This certifies that the works 'Construction of concrete-lined stormwater channels and 300 mm pipe culverts, Jouberton Ext 21' carried out by Bokamoso Drainage and Civils (Pty) Ltd from 05/02/2024 were completed on 26/07/2024 to the satisfaction of the employer. Final contract value R 1 284 000.00 (incl. VAT).

BTsotetsi

Mr B. Tsotetsi - Project manager (fictional signatory)

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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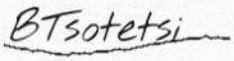
MATLOSANA-WEST LOCAL MUNICIPALITY (FICTIONAL)

Reference letter (specimen layout)

We confirm that Bokamoso Building Contractors CC carried out 'Construction of concrete-lined stormwater channels and 300 mm pipe culverts, Jouberton Ext 21' for us between 05/02/2024 and 26/07/2024. The scope included excavation and shaping of open drains, bedding and laying of concrete pipe culverts, inlet and outlet transitions and reinstatement. Contract value R 1 284 000.00. Performance was satisfactory. Contact: Mr B. Tsotetsi, tel 018 487 2210.



Mr B. Tsotetsi - Project manager (fictional signatory)

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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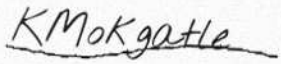
BOPHIRIMA ROADS AGENCY (FICTIONAL)

Reference letter (specimen layout)

We confirm that Bokamoso Drainage and Civils (Pty) Ltd carried out 'Rehabilitation of road-side V-drains and 450 mm culvert crossings, Road D412' for us between 12/08/2024 and 13/12/2024. The scope included excavation and shaping of open drains, bedding and laying of concrete pipe culverts, inlet and outlet transitions and reinstatement. Contract value R 742 500.00. Performance was satisfactory. Contact: Ms K. Mokgatle, tel 053 927 4415.



Ms K. Mokgatle - Project manager (fictional signatory)

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

T2.2-03: Availability of Equipment and Other Resources

The Tenderer to submit a list of all Equipment and other resources that will be used to execute the *works* as described in the Works Information.

Equipment Type and Availability – Description	Hourly Rate	Number of Equipment	Details of Ownership
TLB 4x4 (Bell 315SK) - available full contract period	R 650.00	1	Owned
Tipper truck 6 m3 (Isuzu FTR 850)	R 520.00	1	Owned
LDV 1-ton crew transport (Toyota Hilux)	R 180.00	2	Owned
Pedestrian roller (Bomag BW 65)	R 210.00	1	Hired - Matlosana Plant Hire
Plate compactor 500 kg	R 95.00	2	Owned
Concrete mixer 350 l	R 65.00	1	Owned
Water bowser trailer 1 000 l	R 85.00	1	Owned
Dumpy level, staff and tape (setting out)	R 400.00	1	Owned
Barricading, signage and PPE for 10 workers	Incl. in rates	1 lot	Owned

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MOTOR VEHICLE / PLANT REGISTRATION CERTIFICATES

Certified copies (specimen layout)

Description	TLB 4x4 Bell 315SK (self-propelled plant)
Registration	FKX 418 NW
VIN / serial	BELL315SK-0418829
Title holder / owner	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Licence expiry	31/07/2027

Description	Tipper truck Isuzu FTR 850, 6 m3
Registration	FLM 207 NW
VIN / serial	JAAN1R75LM7100342
Title holder / owner	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Licence expiry	31/07/2027

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

MATLOSANA PLANT HIRE CC (FICTIONAL)

Plant hire confirmation (specimen layout)

We confirm that one Bomag BW 65 pedestrian roller will be available for hire to Bokamoso Drainage and Civils (Pty) Ltd for the duration of RFQ TRIM/2026/09/2227/11458/RFQ (construction and rehabilitation of drainage infrastructure at Leeubos Electrical Substation), at R 210.00 per hour excluding VAT, delivered to site at Leeubos.

HvanWyk

Mr D. van Rooyen - Owner (fictional signatory), tel 018 464 0091 Date: 09/11/2026

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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T2.2-04: Authority to submit tender

Indicate the status of the tenderer by ticking the appropriate box hereunder. The tenderer must complete the certificate set out below for his category of organisation or alternatively attach a certified copy of a company / organisation document which provides the same information for the relevant category as requested here.

A - COMPANY	B - PARTNERSHIP	C - JOINT VENTURE	D - SOLE PROPRIETOR
✓			

A. Certificate for Company

I, LESEGO THABO SEEPE chairperson of the board of directors _____ BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD, hereby confirm that by resolution of the board taken on 20/11/2026 (date), Mr/Ms TSHEPISO BOITUMELO MOREMI, acting in the capacity of Managing Director, was authorised to sign all documents in connection with this tender offer and any contract resulting from it on behalf of the company.

Signed LTSeepe Date 18/11/2026

Name LESEGO THABO SEEPE Position Chairman of the Board of Directors

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BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

Resolution of the Board of Directors

27 Buffelsdoorn Road, Industria, Klerksdorp, 2571 | Tel 018 462 3304 | Reg 2019/284716/07

At a meeting of the Board held at 27 Buffelsdoorn Road, Industria, Klerksdorp, 2571 on 06/11/2026, chaired by LESEGO THABO SEEPE, it was resolved that TSHEPISO BOITUMELO MOREMI, Managing Director, is authorised to sign RFQ TRIM/2026/06/1186/6479/RFQ (construction and rehabilitation of drainage infrastructure at Leeubos Electrical Substation) and all documents and any contract resulting from it on behalf of the company.

TBMoremi

TSHEPISO BOITUMELO MOREMI
Managing Director

LTSeepe

LESEGO THABO SEEPE
Operations Director

BOKAMOSO DRAINAGE AND CIVILS
(PTY) LTD REG 2019/284716/07
INDUSTRIA, KLERKSDORP
TEL 018 462 3304

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B. Certificate for Partnership

We, the undersigned, being the **key partners** in the business trading as _____ _____ hereby authorise Mr/Ms _____ acting in the capacity of _____, to sign all documents in connection with the tender offer for Contract _____ and any contract resulting from it on our behalf.

Name	Address	Signature	Date

NOTE: This certificate is to be completed and signed by the full number of Partners necessary to commit the Partnership. Attach additional pages if more space is required.

N/A - tenderer is a company (see A)

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C. Certificate for Joint Venture

We, the undersigned, are submitting this tender offer in Joint Venture and hereby authorise Mr/Ms _____, an authorised signatory of the company _____, acting in the capacity of lead partner, to sign all documents in connection with the tender offer for Contract _____ _____ and any contract resulting from it on our behalf.

This authorisation is evidenced by the attached power of attorney signed by legally authorised signatories of all the partners to the Joint Venture.

Furthermore we attach to this Schedule a copy of the joint venture agreement which incorporates a statement that all partners are liable jointly and severally for the execution of the contract and that the lead partner is authorised to incur liabilities, receive instructions and payments and be responsible for the entire execution of the contract for and on behalf of any and all the partners.

Name of firm	**Address**	**Authorising signature, name (in caps) and capacity**

N/A - not a joint venture

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D. Certificate for Sole Proprietor

I, _____, hereby confirm that I am the sole owner of the business trading as _____.

Signed		Date	
Name		Position	Sole Proprietor

N/A - not a sole proprietor

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T2.2-05: Risk Elements

Tenderers to identify and evaluate the potential risk elements associated with the Service and possible mitigation thereof. The risk elements and the mitigation as identified thereof by the Tenderer are to be submitted.

If No Risks are identified "No Risks" must be stated on this schedule.

Tenderers are also to evaluate any risk/s stated by the *Employer* in Contract Data Part C1 and provide possible mitigation thereof.

1	Risk: Work next to the operational railway line
	Mitigation: Keep to safe working distances; no plant in danger zone; work under Transnet protection and permits
2	Risk: Unauthorised persons (community) entering site
	Mitigation: Barricade and signpost work area; access register; guard after hours
3	Risk: Hidden services (cables, pipes) in excavations
	Mitigation: Obtain service drawings via Project Manager; scan route; hand-dig near services
4	Risk: Rain and storm water flooding excavations
	Mitigation: Programme work in dry spells; pump out; protect open trenches
5	Risk: Trench side collapse during culvert works
	Mitigation: Shallow trench battered back; daily inspection by competent person
6	Risk: Employer risk: work at heights
	Mitigation: No work at heights in this scope; all work at ground level

Tenders to note: Notwithstanding this information, all costs related to risk elements which are at the Contractor's risk are deemed to be included in the tenderer's offered total of the Prices.

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T2.2-06: Insurance provided by the *Contractor*

Clause 83.1 in NEC3 Engineering Construction Contract (June 2005) (amended June 2006 and April 2013) requires that the *Contractor* provides the insurance stated in the insurance table except any insurance which the *Employer* is to provide as stated in the Contract Data.

Please provide the following details for insurance which the *Contractor* is still to provide. Notwithstanding this information all costs related to insurance are deemed included in the tenderer's rates and prices.

Insurance against (See clause 83.2 of the ECC)	**Name of Insurance Company**	**Cover**	**Premium**
Liability for death of or bodily injury to employees of the *Contractor* arising out of and in the course of their employment in connection with this contract	*Compensation Fund (COID Act) - registered employer* 9904-17263	*Statutory (COIDA)*	*R 5 120.00 p.a. assessment*
Motor Vehicle Liability Insurance comprising (as a minimum) "Balance of Third Party" Risks including Passenger and Unauthorised Passenger Liability indemnity with a minimum indemnity limit of R5,000,000.	*Khumo General Insurance Ltd (fictional) - policy* KGI/MV/26/4-8813	*R 5 000 000.00 limit*	*R 1 940.00 per month*
Insurance in respect of loss of or damage to own property and equipment.	*Khumo General Insurance Ltd (fictional) - policy* KGI/PE/26/4-8814	*R 2 300 000.00*	*R 2 150.00 per month*

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COMPENSATION FUND - LETTER OF GOOD STANDING

(specimen layout)

Employer	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Registration number	990417263
Status	In good standing
Valid until	31/05/2026

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

KHUMO GENERAL INSURANCE LTD (FICTIONAL)

Confirmation of insurance cover (specimen layout)

Insured	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Policy KGI/MV/26/48813	Motor vehicle liability (balance of third party, passenger and unauthorised passenger liability)
Indemnity limit	R 2 000 000.00
Policy KGI/PE/26/48814	Own plant and equipment (all risks)
Sum insured	R 2 300 000.00
Period of cover	01/03/2026 to 28/02/2027

SNaidoo

S. Naidoo - Underwriter (fictional signatory) Date: 04/11/2026

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T2.2-07 : ANNEX G Compulsory Enterprise Questionnaire

The following particulars hereunder must be furnished.

In the case of a Joint Venture, separate enterprise questionnaires in respect of each partner/member must be completed and submitted.

Section 1: Name of enterprise: BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

Section 2: VAT registration number, if any: 4702318845

Section 3: CIDB registration number, if any: CRS 10241873 (1CE PE)

Section 4: CSD number: MAAA1184352

Section 5: Particulars of sole proprietors and partners in partnerships

Name	Identity number	Personal income tax number
N/A		

* Complete only if sole proprietor or partnership and attach separate page if more than 3 partners

Section 6: Particulars of companies and close corporations

Company registration number 2019/284716/07

Close corporation number N/A

Tax reference number: 9318274160

Section 7: The attached SBD4 must be completed for each tender and be attached as a tender requirement.
Section 8: The attached SBD 6 must be completed for each tender and be attached as a requirement.

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The undersigned, who warrants that he / she is duly authorised to do so on behalf of the enterprise:

i) authorizes the Employer to obtain a tax clearance certificate from the South African Revenue Services that my / our tax matters are in order;

ii) confirms that the neither the name of the enterprise or the name of any partner, manager, director or other person, who wholly or partly exercises, or may exercise, control over the enterprise appears on the Register of Tender Defaulters established in terms of the Prevention and Combating of Corrupt Activities Act of 2004;

iii) confirms that no partner, member, director or other person, who wholly or partly exercises, or may exercise, control over the enterprise appears, has within the last five years been convicted of fraud or corruption;

iv) confirms that I / we are not associated, linked or involved with any other tendering entities submitting tender offers and have no other relationship with any of the tenderers or those responsible for compiling the scope of work that could cause or be interpreted as a conflict of interest; and

v) confirms that the contents of this questionnaire are within my personal knowledge and are to the best of my belief both true and correct.

Signed		Date	18/11/2026
Name	TSHEPISO BOITUMELO MOREMI	Position	Managing Director
Enterprise name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD		

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

TAX COMPLIANCE STATUS - PRINT-OUT

Taxpayer compliance status confirmation (specimen layout)

Taxpayer name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Income tax reference	9318274160
Compliance status	Non-compliant
TCS PIN	B7K2M9QX4T
Purpose	Tender
Date of request	12/11/2026
PIN expiry	12/11/2027

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CENTRAL SUPPLIER DATABASE - SUPPLIER REGISTRATION REPORT

Summary report (specimen layout)

Supplier number	MAAA1184325
Unique registration reference	2007731164
Legal name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Trading name	BOKAMOSO CIVILS
Supplier type	Registered company
Registration number	2019/284716/07
Country of origin	South Africa
Government employee	No
Tax compliance status	Non-compliant
VAT number	4720318845
B-BBEE status level	Level 1 (sworn affidavit, EME)
Report date	12/11/2026

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

CENTRAL SUPPLIER DATABASE - SUPPLIER REGISTRATION REPORT

Contact person	TSHEPISO BOITUMELO MOREMI
Email	tenders@bokamosocivils.co.za
Cellular	072 418 6630
Physical address	27 Buffelsdoorn Road, Industria, Klerksdorp, 2571
Bank account verification	Verified
Directors	T.B. MOREMI, L.T. SEEPE
Ownership	100% black owned; 60% black women; 100% black youth
Restricted supplier	No
Tender defaulter	No
Commodities	Civil engineering: stormwater drainage and culverts

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

CONSTRUCTION INDUSTRY DEVELOPMENT BOARD (CIDB)

Register of Contractors - Certificate of Registration (specimen layout)

Contractor name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
CRS number	10241873
Company registration no.	2019/284716/07
Registration date	30/04/2024
Expiry date	30/09/2026
Status	Active

Class of works: GB - General building works

Grading designation: 1GB PE

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

SBD 6.1

PREFERENCE POINTS CLAIM FORM

This preference form must form part of all bids invited. It contains general information and serves as a claim for preference points for Specific Goals contribution. Transnet will award preference points to companies who provide valid proof of evidence as per the table of evidence in paragraph 4.1 below.

---

1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to all bids:

- the 80/20 system for requirements with a Rand value of up to R50 000 000 (all applicable taxes included); and

1.2 The value of this bid is estimated to not exceed R50 000 000 (all applicable taxes included) and therefore the 80/20 preference point system shall be applicable. Despite the stipulated preference point system, Transnet shall use the lowest acceptable bid to determine the applicable preference point system in a situation where all received acceptable bids are received outside the stated preference point system.

1.3 Preference points for this bid shall be awarded for:

(a) Price;

(b) B-BBEE Status Level of Contribution; and

(c) Any other specific goal determined in the Transnet preferential procurement policy

1.4 The maximum points for this bid are allocated as follows:

	POINTS
PRICE	**80**
PREFERENCES (SPECIFIC GOALS)	
B-BBEE Level of contributor (1 or 2)	**10**
At least +50% Black Youth Owned Entities	**10**
Non-Compliant and/or B-BBEE Level 3-8 contributors	**0**
Total points for Price and Specific Goals must not exceed	**100**

1.5 Failure on the part of a bidder to submit proof of evidence required for any of the specific goals together with the bid will be interpreted to mean that preference points for that specific goal are not claimed.

1.6 The purchaser reserves the right to require of a bidder, either before a bid is adjudicated or at any time subsequently, to substantiate any claim in regard to preferences, in any manner required by the purchaser.

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2. DEFINITIONS

(a) **"all applicable taxes"** includes value-added tax, pay as you earn, income tax, unemployment insurance fund contributions and skills development levies;

(b) **"B-BBEE"** means broad-based black economic empowerment as defined in section 1 of the Broad-Based Black Economic Empowerment Act;

(c) "**B-BBEE status level of contributor"** means the B-BBEE status received by a measured entity based on its overall performance using the relevant scorecard contained in the Codes of Good Practice on Black Economic Empowerment, issued in terms of section 9(1) of the Broad-Based Black Economic Empowerment Act;

(d) **"bid"** means a written offer in a prescribed or stipulated form in response to an invitation by an organ of state for the supply/provision of services, works or goods, through price quotations, advertised competitive bidding processes or proposals;

(e) **"Broad-Based Black Economic Empowerment Act"** means the Broad-Based Black Economic Empowerment Act, 2003 (Act No. 53 of 2003);

(f) **"EME"** means an Exempted Micro Enterprise as defines by Codes of Good Practice under section 9 (1) of the Broad-Based Black Economic Empowerment Act, 2003 (Act No. 53 of 2003);

(g) **"functionality"** means the ability of a bidder to provide goods or services in accordance with specification as set out in the bid documents

(h) **"Price"** includes all applicable taxes less all unconditional discounts.

(i) **"Proof of B-BBEE Status Level of Contributor"**

i) the B-BBBEE status level certificate issued by an authorised body or person;

ii) a sworn affidavit as prescribed by the B-BBEE Codes of Good Practice; or

iii) any other requirement prescribed in terms of the B-BBEE Act.

(j) **"QSE"** means a Qualifying Small Enterprise as defines by Codes of Good Practice under section 9 (1) of the Broad-Based Black Economic Empowerment Act, 2003 (Act No. 53 of 2003);

(k) **"rand value"** means the total estimated value of a contract in South African currency, calculated at the time of bid invitations, and includes all applicable taxes and excise duties.

(l) **Specific goals"** means targeted advancement areas or categories of persons or groups either previously disadvantaged or falling within the scope of the Reconstruction and Development Programme identified by Transnet to be given preference in allocation of procurement contracts in line with section 2(1) of the PPPFA.

3. POINTS AWARDED FOR PRICE

3.1 THE 80 PREFERENCE POINT SYSTEMS

A maximum of 80 points is allocated for price on the following basis:

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$$Ps = 80\left(1 - \frac{Pt - P\min}{P\min}\right)^{80/20}$$

Where

Ps = Points scored for comparative price of bid under consideration

Pt = Comparative price of bid under consideration

Pmin = Comparative price of lowest acceptable bid

4. EVIDENCE REQUIRED FOR CLAIMING SPECIFIC GOALS

4.1 In terms of Transnet Preferential Procurement Policy (TPPP) and Procurement Manuals, preference points must be awarded to a bidder for providing evidence in accordance with the table below:

Specific Goals	Acceptable Evidence
B-BBEE	B-BBEE Certificate / Sworn-Affidavit B-BBEE Certificate (in case of JV, a consolidate scorecard will be accept) as per DTIC guidelines
At least +50% Black Youth Owned Entities	Certified copy of ID Documents of the Owners and B-BBEE Certificate / Sworn- Affidavit / B-BBEE CIPC Certificate (in case of JV, a consolidated scorecard will be accepted) as per DTIC guideline

4.2 The table below indicates the required proof of B-BBEE status depending on the category of enterprises:

Enterprise	B-BBEE Certificate & Sworn Affidavit
Large	Certificate issued by SANAS accredited verification agency
QSE	Certificate issued by SANAS accredited verification agency Sworn Affidavit signed by the authorised QSE representative and attested by a Commissioner of Oaths confirming annual turnover and black ownership (only black-owned QSEs - 51% to 100% Black owned) [Sworn affidavits must substantially comply with the format that can be obtained on the DTI's website at www.dti.gov.za/economic_empowerment/bee_codes.jsp.]
EME	Sworn Affidavit signed by the authorised EME representative and attested by a Commissioner of Oaths confirming annual turnover and black ownership Certificate issued by CIPC (formerly CIPRO) confirming annual turnover and black ownership Certificate issued by SANAS accredited verification agency only if the EME is being measured on the QSE scorecard

4.3 A trust, consortium or joint venture (including unincorporated consortia and joint ventures) must submit a consolidated B-BBEE Status Level verification certificate for every separate bid.

4.4 Tertiary Institutions and Public Entities will be required to submit their B-BBEE status level certificates in terms of the specialized scorecard contained in the B-BBEE Codes of Good Practice.

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4.5 A person will not be awarded points for B-BBEE status level if it is indicated in the bid documents that such a bidder intends sub-contracting more than 25% of the value of the contract to any other enterprise that does not qualify for at least the points that such a bidder qualifies for, unless the intended sub-contractor is an EME that has the capability and ability to execute the sub-contract.

4.6 A person awarded a contract may not sub-contract more than 25% of the value of the contract to any other enterprise that does not have an equal or higher B-BBEE status level than the person concerned, unless the contract is sub-contracted to an EME that has the capability and ability to execute the sub-contract.

4.7 Bidders are to note that the rules pertaining to B-BBEE verification and other B-BBEE requirements may be changed from time to time by regulatory bodies such as National Treasury or the DTI. It is the Bidder's responsibility to ensure that his/her bid complies fully with all B-BBEE requirements at the time of the submission of the bid.

5. BID DECLARATION

5.1 Bidders who claim points in respect of B-BBEE Status Level of Contribution must complete the following:

6. B-BBEE STATUS LEVEL OF CONTRIBUTION CLAIMED IN TERMS OF PARAGRAPHS 1.4 AND 6.1

6.1 B-BBEE Status Level of Contribution: *Level 1* = ..30... (maximum of 20 points)

(Points claimed in respect of paragraph 6.1 must be in accordance with the table reflected in paragraph 4.1 and must be substantiated by relevant proof of B-BBEE status level of contributor.

7. SUB-CONTRACTING

7.1 Will any portion of the contract be sub-contracted?

(*Tick applicable box*)

YES	✓	NO	

7.1.1 If yes, indicate:

i) What percentage of the contract will be subcontracted...35.....%
ii) The name of the sub-contractor.....*Mabaleng Plant (Pty) Ltd*.....
iii) The B-BBEE status level of the sub-contractor.....*Level 4*.....
iv) Whether the sub-contractor is an EME or QSE.

(Tick applicable box)

YES		NO ✓	

An EME or QSE which is at last 51% owned by:	EME √	QSE √
Black people		
Black people who are youth		
Black people who are women		
Black people with disabilities		
Black people living in rural or underdeveloped areas or townships		
Cooperative owned by black people		

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	Black people who are military veterans		
	OR		
	Any EME		
	Any QSE		

8. DECLARATION WITH REGARD TO COMPANY/FIRM

8.1 Name of company/firm: ..BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD.....

8.2 VAT registration number: ..4720318845.....

8.3 Company registration number: ..2019/284716/07.....

8.4 TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
- ☐ One person business/sole propriety
- ☐ Close corporation
- ☐ Company
- ☐ ✓ (Pty) Limited

[TICK APPLICABLE BOX]

8.5 DESCRIBE PRINCIPAL BUSINESS ACTIVITIES

..Civil works contractor: stormwater drainage, V-drains,.....
..pipe culverts, minor roads and concrete works.....
.....

8.6 COMPANY CLASSIFICATION

- ☐ Manufacturer
- ☐ Supplier
- ☐ ✓ Professional Supplier/Service provider
- ☐ Other Suppliers/Service providers, e.g. transporter, etc.

[*TICK APPLICABLE BOX*]

8.7 Total number of years the company/firm has been in business: ..7.....

8.8 I/we, the undersigned, who is / are duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the B-BBE status level of contribution indicated in paragraphs 1.4 and 6.1 of the foregoing certificate, qualifies the company/ firm for the preference(s) shown and I / we acknowledge that:

i) The information furnished is true and correct;

ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;

iii) In the event of a contract being awarded as a result of points claimed as shown in paragraph 1.4 and 6.1, the contractor may be required to furnish documentary proof to the satisfaction of the purchaser that the claims are correct;

iv) If a bidder submitted false information regarding its B-BBEE status level of contributor, which will affect or has affected the evaluation of a bid, or where a bidder has failed to declare any subcontracting arrangements or any of the

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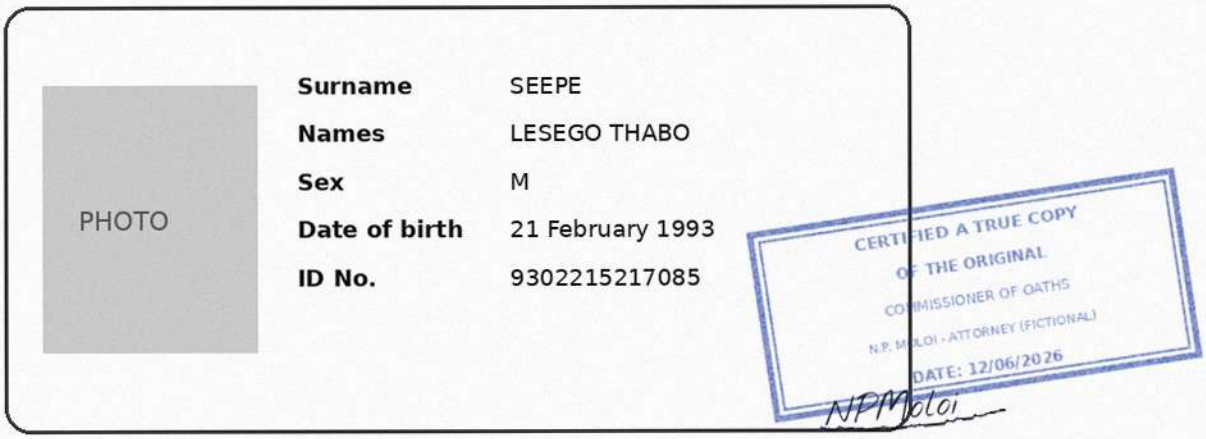
CERTIFIED COPIES OF IDENTITY DOCUMENTS

Republic of South Africa identity cards (specimen layout - copies)



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BIDDER'S DISCLOSURE (SBD4)

1. PURPOSE OF THE FORM

1.1. Any person (natural or juristic) may make an offer or offers in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa, 1996 (Constitution), and further expressed in the various applicable legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

1.2. If a person is listed in the Register for Tender Defaulters and/or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. DECLARATION ON EMPLOYMENT BY ORGAN OF STATE

2.1. Is the bidder, or any of the directors / trustees / shareholders / members / partners of the bidder employed by an organ of state, as defined in section 239 of the Constitution? **YES/NO**

2.2. If YES, furnish particulars of the names, individual identity numbers, in the table below:

Full Name	Identity Number	Name of organ of state
N/A		

2.3. Do you, or any person connected with the bidder, have a relationship with any person who is employed by the procuring institution? **YES/NO**

2.4. If so, furnish particulars:

N/A.....

.....

2.5. Does the bidder or any of its directors/trustees/shareholders members/partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise, whether or not they are bidding for this contract? **YES/NO**

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2.6. If so, indicate all companies registered in the CSD in the table below:

Supplier registration number (MAAA)	Status (active/inactive/deleted)
N/A - no other CSD-registered companies	

Failure to disclose all CSD-registered active companies linked to all Directors will lead to disqualification.

3. GENERAL DECLARATION

I, ..TSHEPISO BOITUMELO MOREMI....., the undersigned, in submitting the accompanying bid, do hereby make the following statements that I certify to be true and complete in every respect:

3.1 I have read and I understand the contents of this disclosure.

3.2 I understand that the accompanying bid will be disqualified if this disclosure is found to be false.

3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor.

3.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.

3.5 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.

3.6 There have been no consultations, communications, agreements or arrangements made by the bidder with any official of the procuring institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.

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3.7 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act, 1998 (Act No. 89 of 1998) and or may be referred to law enforcement agencies for criminal investigation and or may be restricted from conducting business with the state for a period not exceeding 10 years in terms of the Prevention and Combating of Corrupt Activities Act, 2004 (Act No. 12 of 2004) or any other applicable legislation.

I CERTIFY THAT THE ABOVE IS CORRECT.
I ACCEPT THAT THE PROCURING INSTITUTION MAY REJECT THE BID OR TAKE APPROPRIATE ACTION AGAINST ME IF THIS DECLARATION IS FALSE.

TBMoremi
.....
Signature

25/11/2026
.....
Date

Managing Director
.....
Designation

BOKAMOSO DRAINAGE AND CIVILS
.....
Name of bidder

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

IT IS HEREBY AGREED

1. INTERPRETATION

In this Agreement:

1.1 **Agents** mean directors, officers, employees, agents, professional advisers, contractors or sub-contractors, or any Group member;

1.2 **Bid** or **Bid Document** (hereinafter Tender) means Transnet's Request for Information [**RFI**] Request for Proposal [**RFP**] or Request for Quotation [**RFQ**], as the case may be;

1.3 **Confidential Information** means any information or other data relating to one party [the **Disclosing Party**] and/or the business carried on or proposed or intended to be carried on by that party and which is made available for the purposes of the Bid to the other party [the **Receiving Party**] or its Agents by the Disclosing Party or its Agents or recorded in agreed minutes following oral disclosure and any other information otherwise made available by the Disclosing Party or its Agents to the Receiving Party or its Agents, whether before, on or after the date of this Agreement, and whether in writing or otherwise, including any information, analysis or specifications derived from, containing or reflecting such information but excluding information which:

1.3.1 is publicly available at the time of its disclosure or becomes publicly available [other than as a result of disclosure by the Receiving Party or any of its Agents contrary to the terms of this Agreement]; or

1.3.2 was lawfully in the possession of the Receiving Party or its Agents [as can be demonstrated by its written records or other reasonable evidence] free of any restriction as to its use or disclosure prior to its being so disclosed; or

1.3.3 following such disclosure, becomes available to the Receiving Party or its Agents [as can be demonstrated by its written records or other reasonable evidence] from a source other than the Disclosing Party or its Agents, which source is not bound by any duty of confidentiality owed, directly or indirectly, to the Disclosing Party in relation to such information;

1.4 **Group** means any subsidiary, any holding company and any subsidiary of any holding company of either party; and

1.5 **Information** means all information in whatever form including, without limitation, any information relating to systems, operations, plans, intentions, market opportunities,

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T2.2-08: NON-DISCLOSURE AGREEMENT

[...18 November.. 2026]

Note to tenderers: This Non-Disclosure Agreement is to be completed and signed by an authorised signatory:

THIS AGREEMENT is made effective as of ..18..... day of ..November..... 2026.... by and between:

TRANSNET SOC LTD

(Registration No. 1990/000900/30), a company incorporated and existing under the laws of South Africa, having its principal place of business at Transnet Corporate Centre 96 Rissik, Braamfontein, Johannesburg 2000

and

BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

(Registration No. ..2019/284716/07.....), a private company incorporated and existing under the laws of South Africa having its principal place of business at

27 Buffelsdoom Road, Industria, Klerksdorp

North West, 2571

WHEREAS

Transnet and the Company wish to exchange Information [as defined below] and it is envisaged that each party may from time to time receive Information relating to the other in respect thereof. In consideration of each party making available to the other such Information, the parties jointly agree that any dealings between them shall be subject to the terms and conditions of this Agreement which themselves will be subject to the parameters of the Tender Document.

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know-how, trade secrets and business affairs whether in writing, conveyed orally or by machine-readable medium.

2. CONFIDENTIAL INFORMATION

2.1 All Confidential Information given by one party to this Agreement [the **Disclosing Party**] to the other party [the **Receiving Party**] will be treated by the Receiving Party as secret and confidential and will not, without the Disclosing Party's written consent, directly or indirectly communicate or disclose [whether in writing or orally or in any other manner] Confidential Information to any other person other than in accordance with the terms of this Agreement.

2.2 The Receiving Party will only use the Confidential Information for the sole purpose of technical and commercial discussions between the parties in relation to the Tender or for the subsequent performance of any contract between the parties in relation to the Tender.

2.3 Notwithstanding clause 2.1 above, the Receiving Party may disclose Confidential Information:

2.3.1 to those of its Agents who strictly need to know the Confidential Information for the sole purpose set out in clause 2.2 above, provided that the Receiving Party shall ensure that such Agents are made aware prior to the disclosure of any part of the Confidential Information that the same is confidential and that they owe a duty of confidence to the Disclosing Party. The Receiving Party shall at all times remain liable for any actions of such Agents that would constitute a breach of this Agreement; or

2.3.2 to the extent required by law or the rules of any applicable regulatory authority, subject to clause 2.4 below.

2.4 In the event that the Receiving Party is required to disclose any Confidential Information in accordance with clause 2.3.2 above, it shall promptly notify the Disclosing Party and cooperate with the Disclosing Party regarding the form, nature, content and purpose of such disclosure or any action which the Disclosing Party may reasonably take to challenge the validity of such requirement.

2.5 In the event that any Confidential Information shall be copied, disclosed or used otherwise than as permitted under this Agreement then, upon becoming aware of the same, without prejudice to any rights or remedies of the Disclosing Party, the Receiving Party shall as soon as practicable notify the Disclosing Party of such event and if

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requested take such steps [including the institution of legal proceedings] as shall be necessary to remedy [if capable of remedy] the default and/or to prevent further unauthorised copying, disclosure or use.

2.6 All Confidential Information shall remain the property of the Disclosing Party and its disclosure shall not confer on the Receiving Party any rights, including intellectual property rights over the Confidential Information whatsoever, beyond those contained in this Agreement.

3. RECORDS AND RETURN OF INFORMATION

3.1 The Receiving Party agrees to ensure proper and secure storage of all Information and any copies thereof.

3.2 The Receiving Party shall keep a written record, to be supplied to the Disclosing Party upon request, of the Confidential Information provided and any copies made thereof and, so far as is reasonably practicable, of the location of such Confidential Information and any copies thereof.

3.3 The Company shall, within 7 [seven] days of receipt of a written demand from Transnet:

3.3.1 return all written Confidential Information [including all copies]; and

3.3.2 expunge or destroy any Confidential Information from any computer, word processor or other device whatsoever into which it was copied, read or programmed by the Company or on its behalf.

3.4 The Company shall on request supply a certificate signed by a director as to its full compliance with the requirements of clause 3.3.2 above.

4. ANNOUNCEMENTS

4.1 Neither party will make or permit to be made any announcement or disclosure of its prospective interest in the Tender without the prior written consent of the other party.

4.2 Neither party shall make use of the other party's name or any information acquired through its dealings with the other party for publicity or marketing purposes without the prior written consent of the other party.

5. DURATION

The obligations of each party and its Agents under this Agreement shall survive the termination of any discussions or negotiations between the parties regarding the Tender and continue thereafter for a period of 5 [five] years.

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6. PRINCIPAL

Each party confirms that it is acting as principal and not as nominee, agent or broker for any other person and that it will be responsible for any costs incurred by it or its advisers in considering or pursuing the Tender and in complying with the terms of this Agreement.

7. ADEQUACY OF DAMAGES

Nothing contained in this Agreement shall be construed as prohibiting the Disclosing Party from pursuing any other remedies available to it, either at law or in equity, for any such threatened or actual breach of this Agreement, including specific performance, recovery of damages or otherwise.

8. PRIVACY AND DATA PROTECTION

8.1 The Receiving Party undertakes to comply with South Africa's general privacy protection in terms Section 14 of the Bill of Rights in connection with this Tender and shall procure that its personnel shall observe the provisions of such Act [as applicable] or any amendments and re-enactments thereof and any regulations made pursuant thereto.

8.2 The Receiving Party warrants that it and its Agents have the appropriate technical and organisational measures in place against unauthorised or unlawful processing of data relating to the Tender and against accidental loss or destruction of, or damage to such data held or processed by them.

9. GENERAL

9.1 Neither party may assign the benefit of this Agreement, or any interest hereunder, except with the prior written consent of the other, save that Transnet may assign this Agreement at any time to any member of the Transnet Group.

9.2 No failure or delay in exercising any right, power or privilege under this Agreement will operate as a waiver of it, nor will any single or partial exercise of it preclude any further exercise or the exercise of any right, power or privilege under this Agreement or otherwise.

9.3 The provisions of this Agreement shall be severable in the event that any of its provisions are held by a court of competent jurisdiction or other applicable authority to be invalid, void or otherwise unenforceable, and the remaining provisions shall remain enforceable to the fullest extent permitted by law.

9.4 This Agreement may only be modified by a written agreement duly signed by persons authorised on behalf of each party.

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9.5 Nothing in this Agreement shall constitute the creation of a partnership, joint venture or agency between the parties.

9.6 This Agreement will be governed by and construed in accordance with South African law and the parties irrevocably submit to the exclusive jurisdiction of the South African courts.

Signed ..... Date 18/11/2026

Name TSHEPISO BOITUMELO MOREMI Position Managing Director

Tenderer BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

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T2.2-09: SUPPLIER DECLARATION FORM

Transnet Vendor Management has received a request to load / change your company details onto the Transnet vendor master database. Please return the completed Supplier Declaration Form (SDF) together with the required supporting documents as per Appendix A to the Transnet Official who is intending to procure your company's services / products, to enable us to process this request. Please only submit the documentation relevant to your request.

Please Note: all organisations, institutions and individuals who wish to provide goods and/or services to organs of the State must be registered on the National Treasury's Central Supplier Database (CSD). This needs to be done via their portal at https://secure.csd.gov.za/ **before applying to Transnet**.

General Terms and Conditions:

Please Note: Failure to submit the relevant documentation will delay the vendor creation / change process.

Where applicable, the respective Transnet Operating Division processing your application may request further or additional information from your company.

The Service Provider warrants that the details of its bank account ("the nominated account") provided herein, are correct and acknowledges that payments due to the Supplier will be made into the nominated account. If details of the nominated account should change, the Service Provider must notify Transnet in writing of such change, failing which any payments made by Transnet into the nominated account will constitute a full discharge of the indebtedness of Transnet to the Supplier in respect of the payment so made. Transnet will incur no liability for any payments made to the incorrect account or any costs associated therewith. In such an event, the Service Provider indemnifies and holds Transnet harmless in respect of any payments made to an incorrect bank account and will, on demand, pay Transnet any costs associated herewith.

Transnet expects its suppliers to timeously renew their Tax Clearance and B-BBEE certificates (Large Enterprises and QSEs less than 51% black owned) as well as sworn affidavits in the case of EMEs and QSEs with more than 51% black ownership as per Appendices C and D.

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In addition, please take note of the following very important information:

1. **If your annual turnover is R10 million or less,** then in terms of the DTI Generic Codes of Good Practice, you are classified as an Exempted Micro Enterprise (EME). If your company is classified as an EME, please include in your submission a sworn affidavit confirming your company's most recent annual turnover is less than R10 million and percentage of black ownership and black female ownership in the company (Appendix C) OR B-BBEE certificate issued by a verification agency accredited by SANAS in terms of the EME scorecard should you feel you will be able to attain a better B-BBEE score. It is only in this context that an EME may submit a B-BBEE verification certificate. These EME sworn affidavits must be accepted by the Government introduced this mechanism specifically to reduce the cost of doing business and regulatory burden for these entities and the template for the sworn affidavit is available at no cost on the website www.thedti.gov.za or EME certificates at CIPC from www.cipic.co.za.

The B-BBEE Commission said "that only time an EME can be verified by a SANAS accredited verification professional is when it wishes to maximise its B-BBEE points and move to a higher B-BBEEE recognition level, and that must be done use the QSE Scorecard".

2. **If your annual turnover is between R10 million and R50 million,** then in terms of the DTI codes, you are classified as a Qualifying Small Enterprise (QSE). A QSE which is at least 51% black owned, is required to submit a sworn affidavit confirming their annual total revenue of between R10 million and R50 million and level of black ownership (Appendix D). QSE 'that does not qualify for 51% of black ownership, are required to submit a B-BBEE verification certificate issued by a verification agency accredited by SANAS their QSEs are required to submit a B-BBEE verification certificate issued by a verification agency accredited by SANAS.

Please Note: B-BBEE certificate and detailed scorecard should be obtained from an accredited rating agency (e.g. SANAS Member).

3. **If your annual turnover exceeds R50 million,** then in terms of the DTI codes, you are classified as a Large Enterprise. Large Enterprises are required to submit a B-BBEE level verification certificate issued by a verification agency accredited by SANAS.

Please Note: B-BBEE certificate and detailed scorecard should be obtained from an accredited rating agency (e.g. SANAS Member).

4. **The supplier to furnish proof to the procurement department as required in the Fourth Schedule of the Income Tax Act. 58 of 1962** whether a supplier of service is to be classified as an "employee", "personal service provider" or "labour broker". Failure to do so will result in the supplier being subject to employee's tax.

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5. **No payments can be made to a vendor until the** vendor has been registered / updated, and no vendor can be registered / updated until the vendor application form, together with its supporting documentation, has been received and processed**.** No payments can be made to a vendor until the vendor has met / comply with the procurement requirements.

6. It is in line with PPPFA Regulations, only valid B-BBBEE status level certificate issued by an unauthorised body or person OR a sworn affidavit as prescribed by the B-BBEE Codes of Good Practice, OR any other requirement prescribed in terms of the Broad- Based Black Economic Empowerment Act.

7. The B-BBEE Commission advises entities and organs of state to reject B-BBEE certificates that have been issues by verification agencies or professionals who are not accredited by South African National Accreditation Systems ("SANAS) as such B-BBEE certificates are invalid for lack of authority and mandate to issue them. A list of SANAS Accredited agencies is available on the SANAS website at www.sanas.co.za.

8. Presenting banking details. Please note: Banks have decided to enable the customers and provide the ability for customers to generate Account Confirmation/Bank Account letters via their online platform; this is a digital approach to the authentication of banking details.

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SUPPLIER DECLARATION FORM

Supplier Declaration Form

Important Notice: all organisations, institutions and individuals who wish to provide goods and/or services to organs of the State must be registered on the National Treasury Central Supplier Database (CSD). This needs to be done via their portal at https://secure.csd.gov.za/ **before applying to Transnet**.

CSD Number (MAAA xxxxxxx):	MAAA1184352

Company Trading Name	BOKAMOSO CIVILS
Company Registered Name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Company Registration No Or ID No If a Sole Proprietor	2019/284716/07
Company Income Tax Number	9318274160

Form of Entity	CC	Trust	Pty Ltd ✓	Limited	Partnership	Sole Proprietor
	Non-profit (NPO's or NPC)	Personal Liability Co	State Owned Co	National Govt	Provincial Govt	Local Govt
	Education al Institution	Specialise d Profession	Financial Institution	Joint Venture	Foreign International	Foreign Branch Office

Did your company previously operate under another name?	Yes	No ✓
If **YES** state the previous details below:		
Trading Name	N/A	
Registered Name	N/A	
Company Registration No Or ID No If a Sole Proprietor	N/A	

Form of Entity	CC	Trust	Pty Ltd	Limited	Partnership	Sole Proprietor
	Non-profit (NPO's or NPC)	Personal Liability Co	State Owned Co	National Govt	Provincial Govt	Local Govt
	Education al Institution	Specialise d Profession	Financial Institution	Joint Venture	Foreign International	Foreign Branch Office

Your Current Company's VAT Registration Status	VAT registered vendor
VAT Registration Number	4720318845
If **Exempted from VAT registration,** state reason and submit proof from SARS in confirming the exemption status	N/A - registered for VAT

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If your business entity is not VAT Registered, please submit a current original sworn affidavit (see example in Appendix I). Your Non-VAT Registration must be confirmed annually.

Company Banking Details		Bank Name	Lesedi Commercial Bank Ltd (fictional)
Universal Branch Code 711905		Bank Account Number	6211 8447 903

Company Physical Address	27 Buffelsdoorn Road, Industria, Klerksdorp	Code	2571
Company Postal Address	P.O. Box 4417, Klerksdorp	Code	2570
Company Telephone number	018 462 3304		
Company Fax Number	086 512 7781		
Company E-Mail Address	tenders@bokamosocivils.co.za		
Company Website Address	www.bokamosocivils.co.za		

Company Contact Person Name	TSHEPISO BOITUMELO MOREMI
Designation	Managing Director
Telephone	072 418 6630
Email	tenders@bokamosocivils.co.za

Is your company a Labour Broker?		Yes		No ✓		
Main Product / Service Supplied e.g. Stationery / Consulting / Labour etc.	Civil construction - drainage and culverts					
How many personnel does the business employ?	Full Time	14	Part Time	6		
Please Note: Should your business employ more than 2 full time employees who are not connected persons as defined in the Income Tax Act, please submit a sworn affidavit, as per Appendix II.						

Most recent Financial Year's Annual Turnover	<R10Million **EME**		>R10Million <R50Million **QSE**	✓	>R50Million **Large Enterprise**	

Does your company have a valid proof of B-BBEE status?				Yes ✓		No			
Please indicate your Broad-Based BEE status (Level 1 to 9)	**1**	**(2)**	**3**	**4**	**5**	**6**	**7**	**8**	**9**

Majority Race of Ownership								
% Black Ownership	100%	% Black Women Ownership	60%	% Black Disabled person(s) Ownership	0%	% Black Youth Ownership	100%	
% Black Unemployed	0%	% Black People Living in Rural Areas	0%	% Black Military Veterans	0%			

Please Note: Please provide proof of B-BBEE status as per Appendix C and D:

- Large Enterprise and QSEs with less than 51% black ownership need to obtain a B-BBEE certificate and detailed scorecard from an accredited rating agency;

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- EMEs and QSEs with at least 51% black ownership may provide an affidavit using the templates provided in Appendix C and D respectively;
- Black Disabled person(s) ownership will only be accepted if accompanied with a certified letter signed by a physician on the physician's letterhead confirming the disability;
- A certified South African identification document will be required for all Black Youth Ownership.

Supplier Development Information Required	
EMPOWERING SUPPLIER An Empowering Supplier is a B-BBEE compliant Entity which complies with at least three criteria if it is a large Entity, or one criterion if it is a Qualifying Small Enterprise ("QSE"), as detailed in Statement 400 of the New Codes. In terms of the requirements of an Empowering Supplier, numerous companies found it challenging to meet the target of 25% transformation of raw materials or beneficiation including local manufacturing, particularly so, if these companies imported goods or products from offshore. The matter was further compounded by the requirement for 25% of Cost of Sales, excluding labour cost and depreciation, to be procured from local producers or suppliers.	YES ○ NO ✓
FIRST TIME SUPPLIER A supplier that we haven't as yet Traded within Transnet and will be registered via our database for the 1st time.	YES ✓ NO ○
SUPPLIER DEVELOPMENT PLAN Supplier Development Plan is a plan that when we as Transnet award a supplier a long-term contract depending on the complexity of the Transaction. We will negotiate supplier development obligations that they must meet throughout the contract duration. e.g. we might request that they (create jobs or do skills development or encourage procurement from designated groups. (BWO, BYO & BDO etc.).	YES ○ NO ✓
DEVELOPMENT PLAN DOCUMENT Agreed plan that will be crafted with the supplier in regard to their development (It could be for ED OR SD in terms of their developmental needs they may require with the company.	YES ○ NO ✓ *If Yes- Attach supporting documents
ENTERPRISE DEVELOPMENT BENEFICIARY A supplier that is not as yet in our value chain that we are assisting in their developmental area.	YES ○ NO ✓
SUPPLIER DEVELOPMENT BENEFICIARY	YES ○ NO ✓

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A supplier that we are already doing business with or transacting with and we are also assisting them assisting them in their developmental area e.g. (They might require training or financial assistance etc.)	
GRADUATION FROM ED TO SD BENEFICIARY When a supplier that we assisted with as an ED beneficiary then gets awarded a business and we start Transacting with.	YES ○ NO ✓
ENTERPRISE DEVELOPMENT RECIPIENT A supplier that isn't in our value chain as yet, but we have assisted them with an ED intervention	YES ○ NO ✓

By signing below, I hereby verify that I am duly authorised to sign for and on behalf of firm / organisation and that all information contained herein and attached herewith are true and correct

Name and Surname	TSHEPISO BOITUMELO MOREMI	Designation	Managing Director
Signature TBMorema		Date	18/11/2026

COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
12 CENTRAL AVE, KLERKSDORP
DATE: 16/11/2026
NPMoloi

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LESEDI COMMERCIAL BANK LTD (FICTIONAL)

Confirmation of banking details (specimen layout)

Account holder	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Account number	6211 4847 903
Account type	Business current account
Branch	Klerksdorp
Universal branch code	711905
Account opened	02/04/2019
Date	14/05/2026

K Letsoalo

K. Letsoalo - Teller (fictional signatory)

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

COMPANIES AND INTELLECTUAL PROPERTY COMMISSION

Registration certificate (CoR 14.3) - certified copy (specimen layout)

Registration number	2019/284716/07
Company name	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Company type	Private Company
Date of incorporation	14/03/2019

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

COMPANIES AND INTELLECTUAL PROPERTY COMMISSION

Register of directors (CoR 39) - certified copy (specimen layout)

Company	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Registration number	2019/284716/07

Name	ID number / role / appointed
TSHEPISO BOITUMELO MOREMI	9506120384083 Director 14/03/2019
LESEGO THABO SEEPE	9302215217085 Director 14/03/2019

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

Share certificates - certified copies (specimen layout)

SHARE CERTIFICATE No. 1

This is to certify that TSHEPISO BOITUMELO MOREMI (ID 9506120384083) is the registered holder of 600 ordinary shares in BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD, being 60% of the issued shares.

TBMoremi
Director

LTSeepe
Director

SHARE CERTIFICATE No. 2

This is to certify that LESEGO THABO SEEPE (ID 9302215217085) is the registered holder of 400 ordinary shares in BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD, being 40% of the issued shares.

TBMoremi
Director

LTSeepe
Director

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

Confirmation of physical and postal address

27 Buffelsdoorn Road, Industria, Klerksdorp, 2571 | Tel 018 462 3304 | Reg 2019/284716/07

Physical address	27 Buffelsdoorn Road, Industria, Klerksdorp, 2571
Postal address	P.O. Box 4417, Klerksdorp, 2570
Telephone	018 462 3304
Email	tenders@bokamosocivils.co.za

TBMoremi

TSHEPISO BOITUMELO MOREMI - Managing Director Date: 18/11/2026

BOKAMOSO DRAINAGE AND CIVILS
(PTY) LTD REG 2019/284716/07
INDUSTRIA, KLERKSDORP
TEL 018 462 3304

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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APPENDIX B

Affidavit or Solemn Declaration as to VAT registration status

Affidavit or Solemn Declaration N/A - VAT registered (VAT 4720318845)

I, _____ solemnly swear/declare that _____ is not a registered VAT vendor and is not required to register as a VAT vendor because the combined value of taxable supplies made by the provider in any 12 month period has not exceeded or is not expected to exceed R1million threshold, as required in terms of the Value Added Tax Act.

Signature: .....

Designation: .....

Date: .....

Commissioner of Oaths

Thus, signed and sworn to before me at _____ on this the _____ day of _____ 20_____,

The Deponent having knowledge that he/she knows and understands the contents of this Affidavit, and that he/she has no objection to taking the prescribed oath, which he/she regards binding on his/her conscience and that the allegations herein contained are all true and correct.

_____
Commissioner of Oaths

TenderLens test pack - Tender 4 (Transnet RFQ TRIM/2026/09/2227/11458/RFQ) - fictional bidder - not a real submission

APPENDIX C

SWORN AFFIDAVIT – B-BBEE QUALIFYING SMALL ENTERPRISE – GENERAL

I, the undersigned, N/A - EME (see Appendix D)

Full name & Surname	
Identity number	

Hereby declare under oath as follows:

1. The contents of this statement are to the best of my knowledge a true reflection of the facts.

2. I am a Member / Director / Owner of the following enterprise and am duly authorised to act on its behalf:

Enterprise Name:	
Trading Name (If Applicable):	
Registration Number:	
Enterprise Physical Address:	
Type of Entity (CC, (Pty) Ltd, Sole Prop etc.):	
Nature of Business:	
Definition of "Black People"	As per the Broad-Based Black Economic Empowerment Act 53 of 2003 as Amended by Act No 46 of 2013 "Black People" is a generic term which means Africans, Coloureds and Indians – (a) who are citizens of the Republic of South Africa by birth or descent; or (b) who became citizens of the Republic of South Africa by naturalisationi- i. before 27 April 1994; or ii. on or after 27 April 1994 and who would have been entitled to acquire citizenship by naturalization prior to that date;"
Definition of "Black	Black Designated Groups means:

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Designated Groups"	(a) unemployed black people not attending and not required by law to attend an educational institution and not awaiting admission to an educational institution; (b) Black people who are youth as defined in the National Youth Commission Act of 1996; (c) Black people who are persons with disabilities as defined in the Code of Good Practice on employment of people with disabilities issued under the Employment Equity Act; (d) Black people living in rural and under developed areas; (e) Black military veterans who qualifies to be called a military veteran in terms of the Military Veterans Act 18 of 2011;"

3. I hereby declare under Oath that: *N/A - EME (see Appendix D)*

- The Enterprise is _____% Black Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- The Enterprise is _____% Black Female Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- The Enterprise is _____% Black Designated Group Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- Black Designated Group Owned % Breakdown as per the definition stated above:
- Black Youth % = _____%
- Black Disabled % =_____%
- Black Unemployed % =_____%
- Black People living in Rural areas % = _____%
- Black Military Veterans % =_____%
- Based on the Financial Statements/Management Accounts and other information available on the latest financial year-end of _____, the annual Total Revenue was between R10,000,000.00 (Ten Million Rands) and R50,000,000.00 (Fifty Million Rands),
- Please confirm on the table below the B-BBEE level contributor, **by ticking the applicable box.**

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100% Black Owned	**Level One** (135% B-BBEE procurement recognition level)	
At Least 51% black owned	**Level Two** (125% B-BBEE procurement recognition level)	

4. I know and understand the contents of this affidavit, and I have no objection to take the prescribed oath and consider the oath binding on my conscience and on the owners of the enterprise which I represent in this matter.

5. The sworn affidavit will be valid for a period of 12 months from the date signed by commissioner.

Deponent Signature .....

Date .....

Commissioner of Oaths
Signature & stamp
N/A

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APPENDIX D

SWORN AFFIDAVIT – B-BBEE EXEMPTED MICRO ENTERPRISE – GENERAL

I, the undersigned,

Full name & Surname	TSHEPISO BOITUMELO MOREMI
Identity number	9506120384083

Hereby declare under oath as follows:

1. The contents of this statement are to the best of my knowledge a true reflection of the facts.

2. I am a Member / Director / Owner of the following enterprise and am duly authorised to act on its behalf:

Enterprise Name:	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
Trading Name (If Applicable):	BOKAMOSO CIVILS
Registration Number:	2019/284716/07
Enterprise Physical Address:	27 Buffelsdoorn Road, Industria, Klerksdorp, 2571
Type of Entity (CC, (Pty) Ltd, Sole Prop etc.):	(Pty) Ltd - private company
Nature of Business:	Civil works: stormwater drainage, culverts, minor roads
Definition of "Black People"	As per the Broad-Based Black Economic Empowerment Act 53 of 2003 as Amended by Act No 46 of 2013 "Black People" is a generic term which means Africans, Coloureds and Indians – (a) who are citizens of the Republic of South Africa by birth or descent; or (b) who became citizens of the Republic of South Africa by naturalisation- i. before 27 April 1994; or

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	ii. on or after 27 April 1994 and who would have been entitled to acquire citizenship by naturalization prior to that date;"
Definition of "Black Designated Groups"	"Black Designated Groups means: (a) unemployed black people not attending and not required by law to attend an educational institution and not awaiting admission to an educational institution; (b) Black people who are youth as defined in the National Youth Commission Act of 1996; (c) Black people who are persons with disabilities as defined in the Code of Good Practice on employment of people with disabilities issued under the Employment Equity Act; (d) Black people living in rural and under developed areas; (e) Black military veterans who qualifies to be called a military veteran in terms of the Military Veterans Act 18 of 2011;"

3. I hereby declare under Oath that:

- The Enterprise is 100 % Black Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- The Enterprise is 40 % Black Female Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- The Enterprise is 100 % Black Designated Group Owned as per Amended Code Series 100 of the Amended Codes of Good Practice issued under section 9 (1) of B-BBEE Act No 53 of 2003 as Amended by Act No 46 of 2013,
- Black Designated Group Owned % Breakdown as per the definition stated above:
- Black Youth % = 100 %
- Black Disabled % = 0 %
- Black Unemployed % = 0 %
- Black People living in Rural areas % = 0 %
- Black Military Veterans % = 0 %

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- Based on the Financial Statements/Management Accounts and other information available on the latest financial year-end of 28/02/2026, the annual Total Revenue was R10,000,000.00 (Ten Million Rands) or less
- Please Confirm on the below table the B-BBEE Level Contributor, **by ticking the applicable box.**

100% Black Owned	**Level One** (135% B-BBEE procurement recognition	
At least 51% Black Owned	**Level Two** (125% B-BBEE procurement recognition level)	✓
Less than 51% Black Owned	**Level Four** (100% B-BBEE procurement recognition level)	

4. I know and understand the contents of this affidavit, and I have no objection to take the prescribed oath and consider the oath binding on my conscience and on the Owners of the Enterprise which I represent in this matter.

5. The sworn affidavit will be valid for a period of 12 months from the date signed by commissioner.

Deponent Signature TBMoremi .....

Date 16/11/2026 .....

Commissioner of Oaths

Signature & stamp

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VENDOR REGISTRATION DOCUMENTS CHECKLIST

Please note that you will have to provide the first two documents on the list (highlighted in red) and the rest will be provided by the supplier:

	Yes	No
1. Complete the "Supplier Declaration Form" (SDF) (commissioned). See attachment.	✓	
2. Complete the "Supplier Code of Conduct" (SCC). See attachment.	✓	
3. Copy of cancelled cheque OR letter from the bank verifying banking details (with **bank stamp not older than 3 Months & sign by Bank Teller**).	✓	
4. Certified (**Not Older than 3 Months**) copy of Identity document of Shareholders/Directors/Members (where applicable).	✓	
5. Certified copy of certificate of incorporation, CM29 / CM9 (name change).	✓	
6. Certified copy of share Certificates of Shareholders, CK1 / CK2 (if CC).	✓	
7. A letter with the company's letterhead confirming both **Physical** and **Postal** address.	✓	
8. Original or certified copy of SARS Tax Clearance certificate and Vat registration certificate.	✓	
9. BBBEE certificate and detailed scorecard from a **SANAS** Accredited Verification Agency and/or Sworn Certified Affidavit.	✓	
10. Central Supplier Database (CSD) Summary Registration Report.	✓	

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T2.2-10: RFQ DECLARATION FORM

NAME OF COMPANY: BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

We BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD do hereby certify that:

1. Transnet has supplied and we have received appropriate tender offers to any/all questions (as applicable) which were submitted by ourselves for tender clarification purposes;
2. we have received all information we deemed necessary for the completion of this Tender;
3. at no stage have we received additional information relating to the subject matter of this tender from Transnet sources, other than information formally received from the designated Transnet contact(s) as nominated in the tender documents;
4. we are satisfied, insofar as our company is concerned, that the processes and procedures adopted by Transnet in issuing this tender and the requirements requested from tenderers in responding to this tender have been conducted in a fair and transparent manner; and
5. furthermore, we acknowledge that a direct relationship exists between a family member and/or an owner / member / director / partner / shareholder (unlisted companies) of our company and an employee or board member of the Transnet Group as indicated below: *[Respondent to indicate if this section is not applicable]*

   FULL NAME OF OWNER/MEMBER/DIRECTOR/
   PARTNER/SHAREHOLDER: ADDRESS:

   _____

   _____

   _____

   Indicate nature of relationship with Transnet:

   _____

   _____

   _____

   _____

   [Failure to furnish complete and accurate information in this regard may lead to the disqualification of your response and may preclude a Respondent from doing future business with Transnet]

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We declare, to the extent that we are aware or become aware of any relationship between ourselves and Transnet (other than any existing and appropriate business relationship with Transnet) which could unfairly advantage our company in the forthcoming adjudication process, we shall notify Transnet immediately in writing of such circumstances.

6. We accept that any dispute pertaining to this tender will be resolved through the Ombudsman process and will be subject to the Terms of Reference of the Ombudsman. The Ombudsman process must first be exhausted before judicial review of a decision is sought. (Refer "Important Notice to respondents" below).

7. We further accept that Transnet reserves the right to reverse a tender award or decision based on the recommendations of the Ombudsman without having to follow a formal court process to have such award or decision set aside.

8. We have acquainted ourselves and agree with the content of T2.2-18 "Service Provider Integrity Pact".

For and on behalf of BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD duly authorised thereto
Name: TSHEPISO BOITUMELO MOREMI
Signature: TBMoremi
Date: 18/11/2026

IMPORTANT NOTICE TO TENDERERS

- Transnet has appointed a Procurement Ombudsman to investigate any material complaint in respect of tenders exceeding R5,000,000.00 (five million S.A. Rand) in value. Should a Tenderer have any material concern regarding an tender process which meets this value threshold, a complaint may be lodged with Transnet's Procurement Ombudsman for further investigation.

- It is incumbent on the Tenderer to familiarise himself/herself with the Terms of Reference for the Transnet Procurement Ombudsman, details of which are available for review at Transnet's website www.transnet.net.

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- An official complaint form may be downloaded from this website and submitted, together with any supporting documentation, within the prescribed period, to procurement.ombud@transnet.net
- For transactions below the R5,000,000.00 (five million S.A. Rand) threshold, a complaint may be lodged with the Chief Procurement Officer of the relevant Transnet Operating Division.
- All Tenderers should note that a complaint must be made in good faith. If a complaint is made in bad faith, Transnet reserves the right to place such a tenderer on its List of Excluded Bidders.

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T2.2-11: Service Provider Integrity Pact

Important Note: All potential tenderers must read this document and certify in the RFQ Declaration Form that that have acquainted themselves with and agree with the content.

The contract with the successful tenderer will automatically incorporate this Integrity Pact and shall be deemed as part of the final concluded contract.

INTEGRITY PACT

Between

TRANSNET SOC LTD

Registration Number: 1990/000900/30

("Transnet")

and

The Contractor (hereinafter referred to as the "Tenderer/Service Providers/Contractor")

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PREAMBLE

Transnet values full compliance with all relevant laws and regulations, ethical standards and the principles of economical use of resources, fairness and transparency in its relations with its Tenderers/Service Providers/Contractors.

In order to achieve these goals, Transnet and the Tenderer/Service Provider/Contractor hereby enter into this agreement hereinafter referred to as the "Integrity Pact" which will form part of the Tenderer's/Service Provider's/Contractor's application for registration with Transnet as a vendor.

The general purpose of this Integrity Pact is to agree on avoiding all forms of dishonesty, fraud and corruption by following a system that is fair, transparent and free from any undue influence prior to, during and subsequent to the currency of any procurement and/or reverse logistics event and any further contract to be entered into between the Parties, relating to such event.

All Tenderers/Service Providers/Contractor's will be required to sign and comply with undertakings contained in this Integrity Pact, should they want to be registered as a Transnet vendor.

1 OBJECTIVES

1.1 Transnet and the Tenderer/Service Provider/Contractor agree to enter into this Integrity Pact, to avoid all forms of dishonesty, fraud and corruption including practices that are anti-competitive in nature, negotiations made in bad faith and under-pricing by following a system that is fair, transparent and free from any influence/unprejudiced dealings prior to, during and subsequent to the currency of the contract to be entered into with a view to:

a) Enable Transnet to obtain the desired contract at a reasonable and competitive price in conformity to the defined specifications of the works, goods and services; and

b) Enable Tenderers/Service Providers/Contractors to abstain from bribing or participating in any corrupt practice in order to secure the contract.

2 COMMITMENTS OF TRANSNET

Transnet commits to take all measures necessary to prevent dishonesty, fraud and corruption and to observe the following principles:

2.1 Transnet hereby undertakes that no employee of Transnet connected directly or indirectly with the sourcing event and ensuing contract, will demand, take a promise for or accept directly or through intermediaries any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the Tenderer, either for themselves or for any person, organisation or third party related to the contract in exchange for an advantage in the tendering process, Tender evaluation, contracting or implementation process related to any contract.

2.2 Transnet will, during the registration and tendering process treat all Tenderers/ Service Providers/Contractor with equity, transparency and fairness. Transnet

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will in particular, before and during the registration process, provide to all Tenderers/ Service Providers/Contractors the same information and will not provide to any Tenderers/Service Providers/Contractors confidential/additional information through which the Tenderers/Service Providers/Contractors could obtain an advantage in relation to any tendering process.

2.3 Transnet further confirms that its employees will not favour any prospective Tenderers/Service Providers/Contractors in any form that could afford an undue advantage to a particular Tenderer during the tendering stage, and will further treat all Tenderers/Service Providers/Contractors participating in the tendering process in a fair manner.

2.4 Transnet will exclude from the tender process such employees who have any personal interest in the Tenderers/Service Providers/Contractors participating in the tendering process.

3 OBLIGATIONS OF THE TENDERER / SERVICE PROVIDER

3.1 Transnet has a '**Zero Gifts'** Policy. No employee is allowed to accept gifts, favours or benefits.

a) Transnet officials and employees **shall not** solicit, give or accept, or from agreeing to solicit, give, accept or receive directly or indirectly, any gift, gratuity, favour, entertainment, loan, or anything of monetary value, from any person or juridical entities in the course of official duties or in connection with any operation being managed by, or any transaction which may be affected by the functions of their office.

b) Transnet officials and employees **shall not** solicit or accept gifts of any kind, from vendors, suppliers, customers, potential employees, potential vendors, and suppliers, or any other individual or organisation irrespective of the value.

c) Under **no circumstances** should gifts, business courtesies or hospitality packages be accepted from or given to prospective suppliers participating in a tender process at the respective employee's Operating Division, regardless of retail value.

d) Gratuities, bribes or kickbacks of any kind must never be solicited, accepted or offered, either directly or indirectly. This includes money, loans, equity, special privileges, personal favours, benefit or services. Such favours will be considered to constitute corruption.

3.2 The Tenderer/Service Provider/Contractor commits itself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its Tender or during any ensuing contract stage in order to secure the contract or in furtherance to secure it and in particular the Tenderer/Service Provider/Contractor commits to the following:

a) The Tenderer/Service Provider/Contractor will not, directly or through any other person or firm, offer, promise or give to Transnet or to any of Transnet's employees involved in the tendering process or to any third

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person any material or other benefit or payment, in order to obtain in exchange an advantage during the tendering process; and

b) The Tenderer/Service Provider/Contractor will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any employee of Transnet, connected directly or indirectly with the tendering process, or to any person, organisation or third party related to the contract in exchange for any advantage in the tendering, evaluation, contracting and implementation of the contract.

3.3 The Tenderer/Service Provider/Contractor will not collude with other parties interested in the contract to preclude a competitive Tender price, impair the transparency, fairness and progress of the tendering process, Tender evaluation, contracting and implementation of the contract. The Tenderer / Service Provider further commits itself to delivering against all agreed upon conditions as stipulated within the contract.

3.4 The Tenderer/Service Provider/Contractor will not enter into any illegal or dishonest agreement or understanding, whether formal or informal with other Tenderers/Service Providers/Contractors. This applies in particular to certifications, submissions or non-submission of documents or actions that are restrictive or to introduce cartels into the tendering process.

3.5 The Tenderer/Service Provider/Contractor will not commit any criminal offence under the relevant anti-corruption laws of South Africa or any other country. Furthermore, the Tenderer/Service Provider/Contractor will not use for illegitimate purposes or for restrictive purposes or personal gain, or pass on to others, any information provided by Transnet as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.

3.6 A Tenderer/Service Provider/Contractor of foreign origin shall disclose the name and address of its agents or representatives in South Africa, if any, involved directly or indirectly in the registration or tendering process. Similarly, the Tenderer / Service Provider / Contractor of South African nationality shall furnish the name and address of the foreign principals, if any, involved directly or indirectly in the registration or tendering process.

3.7 The Tenderer/Service Provider/Contractor will not misrepresent facts or furnish false or forged documents or information in order to influence the tendering process to the advantage of the Tenderer/Service Provider/Contractor or detriment of Transnet or other competitors.

3.8 Transnet may require the Tenderer/Service Provider/Contractor to furnish Transnet with a copy of its code of conduct. Such code of conduct must address

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the compliance programme for the implementation of the code of conduct and reject the use of bribes and other dishonest and unethical conduct.

3.9 The Tenderer/Service Provider/Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

3.10 The Tenderer/Service Provider/Contractor confirms that they will uphold the ten principles of the United Nations Global Compact (UNGC) in the fields of Human Rights, Labour, Anti-Corruption and the Environment when undertaking business with Transnet as follows:

a) Human Rights

- Principle 1: Businesses should support and respect the protection of internationally proclaimed human rights; and
- Principle 2: make sure that they are not complicit in human rights abuses.

b) Labour

- Principle 3: Businesses should uphold the freedom of association and the effective recognition of the right to collective bargaining;
- Principle 4: the elimination of all forms of forced and compulsory labour;
- Principle 5: the effective abolition of child labour; and
- Principle 6: the elimination of discrimination in respect of employment and occupation.

c) Environment

- Principle 7: Businesses should support a precautionary approach to environmental challenges;
- Principle 8: undertake initiatives to promote greater environmental responsibility; and
- Principle 9: encourage the development and diffusion of environmentally friendly technologies.

d) Anti-Corruption

- Principle 10: Businesses should work against corruption in all its forms, including extortion and bribery.

4 INDEPENDENT TENDERING

4.1 For the purposes of that Certificate in relation to any submitted Tender, the Tenderer declares to fully understand that the word "competitor" shall include any individual or organisation, other than the Tenderer, whether or not affiliated with the Tenderer, who:

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a) has been requested to submit a Tender in response to this Tender invitation;
b) could potentially submit a Tender in response to this Tender invitation, based on their qualifications, abilities or experience; and
c) provides the same Goods and Services as the Tenderer and/or is in the same line of business as the Tenderer.

4.2 The Tenderer has arrived at his submitted Tender independently from, and without consultation, communication, agreement or arrangement with any competitor. However communication between partners in a joint venture or consortium will not be construed as collusive tendering.

4.3 In particular, without limiting the generality of paragraph 5 above, there has been no consultation, communication, agreement or arrangement with any competitor regarding:

a) prices;
b) geographical area where Goods or Services will be rendered [market allocation];
c) methods, factors or formulas used to calculate prices;
d) the intention or decision to submit or not to submit, a Tender;
e) the submission of a Tender which does not meet the specifications and conditions of the RFQ; or
f) tendering with the intention of not winning the Tender.

4.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications and conditions or delivery particulars of the Goods or Services to which his/her tender relates.

4.5 The terms of the Tender as submitted have not been, and will not be, disclosed by the Tenderer, directly or indirectly, to any competitor, prior to the date and time of the official Tender opening or of the awarding of the contract.

4.6 Tenderers are aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to Tenders and contracts, Tenders that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and/or may be reported to the National Prosecuting Authority [**NPA**] for criminal investigation and/or may be restricted from conducting business with the public sector for a period not exceeding 10 [ten] years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

4.7 Should the Tenderer find any terms or conditions stipulated in any of the relevant documents quoted in the Tender unacceptable, it should indicate which

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conditions are unacceptable and offer alternatives by written submission on its company letterhead, attached to its submitted Tender. Any such submission shall be subject to review by Transnet's Legal Counsel who shall determine whether the proposed alternative(s) are acceptable or otherwise, as the case may be.

5 DISQUALIFICATION FROM TENDERING PROCESS

5.1 If the Tenderer/Service Provider/Contractor has committed a transgression through a violation of section 3 of this Integrity Pact or in any other form such as to put its reliability or credibility as a Tenderer/Service Provider/Contractor into question, Transnet may reject the Tenderer's / Service Provider's / Contractor's application from the registration or tendering process and remove the Tenderer/Service Provider/Contractor from its database, if already registered.

5.2 If the Tenderer/Service Provider/Contractor has committed a transgression through a violation of section 3, or any material violation, such as to put its reliability or credibility into question. Transnet may after following due procedures and at its own discretion also exclude the Tenderer/Service Provider /Contractor from future tendering processes. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, which will include amongst others the number of transgressions, the position of the transgressors within the company hierarchy of the Tenderer/Service Provider/Contractor and the amount of the damage. The exclusion will be imposed for up to a maximum of 10 (ten) years. However, Transnet reserves the right to impose a longer period of exclusion, depending on the gravity of the misconduct.

5.3 If the Tenderer/Service Provider/Contractor can prove that it has restored the damage caused by it and has installed a suitable corruption prevention system, or taken other remedial measures as the circumstances of the case may require, Transnet may at its own discretion revoke the exclusion or suspend the imposed penalty.

6 TRANSNET'S LIST OF EXCLUDED TENDERERS (BLACKLIST)

6.1 The process of restriction is used to exclude a company/person from conducting future business with Transnet and other organs of state for a specified period. No Tender shall be awarded to a Tenderer whose name (or any of its members, directors, partners or trustees) appear on the Register of Tender Defaulters kept by National Treasury, or who have been placed on National Treasury's List of Restricted Suppliers. Transnet reserves the right to withdraw an award, or cancel a contract concluded with a Tenderer should it be established, at any time, that a tenderer has been restricted with National Treasury by another government institution.

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6.2 All the stipulations on Transnet's restriction process as laid down in Transnet's Supply Chain Policy and Procurement Procedures Manual (CPM included) are included herein by way of reference. Below follows a condensed summary of this restriction procedure.

6.3 On completion of the restriction procedure, Transnet will submit the restricted entity's details (including the identity number of the individuals and registration number of the entity) to National Treasury for placement on National Treasury's Database of Restricted Suppliers for the specified period of exclusion. National Treasury will make the final decision on whether to restrict an entity from doing business with any organ of state for a period not exceeding 10 years and place the entity concerned on the Database of Restricted Suppliers published on its official website.

6.4 The decision to restrict is based on one of the grounds for restriction. The standard of proof to commence the restriction process is whether a "*prima facie*" (i.e. on the face of it) case has been established.

6.5 Depending on the seriousness of the misconduct and the strategic importance of the Goods/Services, in addition to restricting a company/person from future business, Transnet may decide to terminate some or all existing contracts with the company/person as well.

6.6 A Service Provider or Contractor to Transnet may not subcontract any portion of the contract to a blacklisted company.

6.7 Grounds for blacklisting include: If any person/Enterprise which has submitted a Tender, concluded a contract, or, in the capacity of agent or subcontractor, has been associated with such Tender or contract:

a) Has, in bad faith, withdrawn such Tender after the advertised closing date and time for the receipt of Tenders;
b) has, after being notified of the acceptance of his Tender, failed or refused to sign a contract when called upon to do so in terms of any condition forming part of the Tender documents;
c) has carried out any contract resulting from such Tender in an unsatisfactory manner or has breached any condition of the contract;
d) has offered, promised or given a bribe in relation to the obtaining or execution of the contract;
e) has acted in a fraudulent or improper manner or in bad faith towards Transnet or any Government Department or towards any public body, Enterprise or person;

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f) has made any incorrect statement in a certificate or other communication with regard to the Local Content of his Goods or his B-BBEE status and is unable to prove to the satisfaction of Transnet that:

(i) he made the statement in good faith honestly believing it to be correct; and

(ii) before making such statement he took all reasonable steps to satisfy himself of its correctness;

g) caused Transnet damage, or to incur costs in order to meet the contractor's requirements and which could not be recovered from the contractor;

h) has litigated against Transnet in bad faith.

6.8 Grounds for blacklisting include a company/person recorded as being a company or person prohibited from doing business with the public sector on National Treasury's database of Restricted Service Providers or Register of Tender Defaulters.

6.9 Companies associated with the person/s guilty of misconduct (i.e. entities owned, controlled or managed by such persons), any companies subsequently formed by the person(s) guilty of the misconduct and/or an existing company where such person(s) acquires a controlling stake may be considered for blacklisting. The decision to extend the blacklist to associated companies will be at the sole discretion of Transnet.

7 PREVIOUS TRANSGRESSIONS

7.1 The Tenderer/Service Provider/Contractor hereby declares that no previous transgressions resulting in a serious breach of any law, including but not limited to, corruption, fraud, theft, extortion and contraventions of the Competition Act 89 of 1998, which occurred in the last 5 (five) years with any other public sector undertaking, government department or private sector company that could justify its exclusion from its registration on the Tenderer's/Service Provider's/Contractor's database or any tendering process.

7.2 If it is found to be that the Tenderer/Service Provider/Contractor made an incorrect statement on this subject, the Tenderer/Service Provider/Contractor can be rejected from the registration process or removed from the Tenderer/ Service Provider/Contractor database, if already registered, for such reason (refer to the Breach of Law Returnable Form contained in the document.)

8 SANCTIONS FOR VIOLATIONS

8.1 Transnet shall also take all or any of the following actions, wherever required to:

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a) Immediately exclude the Tenderer/Service Provider/Contractor from the tendering process or call off the pre-contract negotiations without giving any compensation the Tenderer/Service Provider/Contractor. However, the proceedings with the other Tenderer/ Service Provider/Contractor may continue;
b) Immediately cancel the contract, if already awarded or signed, without giving any compensation to the Tenderer/Service Provider/Contractor;
c) Recover all sums already paid by Transnet;
d) Encash the advance bank guarantee and performance bond or warranty bond, if furnished by the Tenderer/Service Provider/Contractor, in order to recover the payments, already made by Transnet, along with interest;
e) Cancel all or any other contracts with the Tenderer/Service Provider/Contractor; and
f) Exclude the Tenderer/ Service Provider/Contractor from entering into any Tender with Transnet in future.

9 CONFLICTS OF INTEREST

9.1 A conflict of interest includes, inter alia, a situation in which:
a) A Transnet employee has a personal financial interest in a tendering / supplying entity; and
b) A Transnet employee has private interests or personal considerations or has an affiliation or a relationship which affects, or may affect, or may be perceived to affect his / her judgment in action in the best interest of Transnet, or could affect the employee's motivations for acting in a particular manner, or which could result in, or be perceived as favouritism or nepotism.

9.2 A Transnet employee uses his / her position, or privileges or information obtained while acting in the capacity as an employee for:
a) Private gain or advancement; or
b) The expectation of private gain, or advancement, or any other advantage accruing to the employee must be declared in a prescribed form.

Thus, conflicts of interest of any Tender committee member or any person involved in the sourcing process must be declared in a prescribed form.

9.3 If a Tenderer/Service Provider/Contractor has or becomes aware of a conflict of interest i.e. a family, business and / or social relationship between its owner(s)/ member(s)/director(s)/partner(s)/shareholder(s) and a Transnet employee/ member of Transnet's Board of Directors in respect of a Tender which will be considered for the Tender process, the Tenderer/Service Provider/ Contractor:
a) must disclose the interest and its general nature, in the Request for Proposal ("RFX") declaration form; or
b) must notify Transnet immediately in writing once the circumstances has arisen.

9.4 The Tenderer/Service Provider/Contractor shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any committee member or any person involved in the sourcing process,

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where this is done, Transnet shall be entitled forthwith to rescind the contract and all other contracts with the Tenderer/Service Provider/Contractor.

10 DISPUTE RESOLUTION

10.1 Transnet recognises that trust and good faith are pivotal to its relationship with its Tenderer / Service Provider / Contractor. When a dispute arises between Transnet and its Tenderer / Service Provider / Contractor, the parties should use their best endeavours to resolve the dispute in an amicable manner, whenever possible. Litigation in bad faith negates the principles of trust and good faith on which commercial relationships are based. Accordingly, following a blacklisting process as mentioned in paragraph 6 above, Transnet will not do business with a company that litigates against it in bad faith or is involved in any action that reflects bad faith on its part. Litigation in bad faith includes, but is not limited to the following instances:

a) **Vexatious proceedings**: these are frivolous proceedings which have been instituted without proper grounds;
b) **Perjury:** where a Tenderer / Service Provider / Contractor make a false statement either in giving evidence or on an affidavit;
c) **Scurrilous allegations:** where a Tenderer / Service Provider / Contractor makes allegations regarding a senior Transnet employee which are without proper foundation, scandalous, abusive or defamatory; and
d) **Abuse of court process:** when a Tenderer / Service Provider / Contractor abuses the court process in order to gain a competitive advantage during a Tender process.

11 GENERAL

11.1 This Integrity Pact is governed by and interpreted in accordance with the laws of the Republic of South Africa.

11.2 The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the law relating to any civil or criminal proceedings.

11.3 The validity of this Integrity Pact shall cover all the tendering processes and will be valid for an indefinite period unless cancelled by either Party.

11.4 Should one or several provisions of this Integrity Pact turn out to be invalid the remainder of this Integrity Pact remains valid.

11.5 Should a Tenderer/Service Provider/Contractor be confronted with dishonest, fraudulent or corruptive behaviour of one or more Transnet employees, Transnet expects its Tenderer/Service Provider/Contractor to report this behaviour directly to a senior Transnet official/employee or alternatively by using Transnet's "Tip-

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Off Anonymous" hotline number 0800 003 056, whereby your confidentiality is guaranteed.

The Parties hereby declare that each of them has read and understood the clauses of this Integrity Pact and shall abide by it. To the best of the Parties' knowledge and belief, the information provided in this Integrity Pact is true and correct.

I THABO MOLEFE duly authorised by the tendering entity, hereby certify that the tendering entity are **fully acquainted** with the contents of the Integrity Pact and further **agree to abide by it** in full.

Signature TMolefe

Date 18/11/2026

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TRANSNET

T2.2-12: REQUEST FOR QUOTATION – BREACH OF LAW

NAME OF COMPANY: BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

I / We TSHEPISO BOITUMELO MOREMI for BOKAMOSO DRAINAGE AND CIVILS do hereby certify that ***I/we (have) / have not been*** found guilty during the preceding 5 (five) years of a serious breach of law, including but not limited to a breach of the Competition Act, 89 of 1998, by a court of law, tribunal or other administrative body. The type of breach that the Tenderer is required to disclose excludes relatively minor offences or misdemeanours, e.g. traffic offences.

Where found guilty of such a serious breach, please disclose:

NATURE OF BREACH:

NOT APPLICABLE - no serious breach of law

DATE OF BREACH:
NOT APPLICABLE

Furthermore, I/we acknowledge that Transnet SOC Ltd reserves the right to exclude any Tenderer from the tendering process, should that person or company have been found guilty of a serious breach of law, tribunal or regulatory obligation.

Signed on this 18th day of November 20 26

TBMoremi

SIGNATURE OF TENDER

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T2.2-13: Agreement in terms of Protection of Personal Information Act, 4 of 2013 ("POPIA")

1. PREAMBLE AND INTRODUCTION

1.1. The rights and obligation of the Parties in terms of the Protection of Personal Information Act, 4 of 2013 ("POPIA") are included as forming part of the terms and conditions of this contract.

2. PROTECTION OF PERSONAL INFORMATION

2.1. The following terms shall bear the same meaning as contemplated in Section 1 of the Protection of Person information act, No. of 2013 "(POPIA"):

consent; data subject; electronic communication; information officer; operator; person; personal information; processing; record; Regulator; responsible party; special information; as well as any terms derived from these terms.

2.2. The Operator will process all information by the Transnet in terms of the requirements contemplated in Section 4(1) of the POPIA:

Accountability; Processing limitation; Purpose specification; Further processing limitation; Information quality; Openness; Security safeguards and Data subject participation.

2.3. The Parties acknowledge and agree that, in relation to personal information of Transnet and the information of a third party that will be processed pursuant to this Agreement, the Operator is (BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD *name of Tenderer/Contractor*) hereinafter Operator and the Data subject is "Transnet". Operator will process personal information only with the knowledge and authorisation of Transnet and will treat personal information and the information of a third party which comes to its knowledge as confidential and will not disclose it, unless so required by law or subject to the exceptions contained in the POPIA.

2.4. Transnet reserves all the rights afforded to it by the POPIA in the processing of any of its information as contained in this Agreement and the Operator is required to comply with all prescripts as detailed in the POPIA relating to all information concerning Transnet.

2.5. In terms of this Agreement, the Operator acknowledges that it will obtain and have access to personal information of Transnet and the information of a third party and agrees that it shall only process the information disclosed by Transnet in terms of this Agreement and only for the purposes as detailed in this Agreement and in accordance with any applicable law.

2.6. Should there be a need for the Operator to process the personal information and the information of a third party in a way that is not agreed to in this Agreement, the Operator must request consent from Transnet to the processing of its personal information or and the information of a third party in a manner other than that it was collected for, which consent cannot be unreasonably withheld.

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2.7. Furthermore, the Operator will not otherwise modify, amend or alter any personal information and the information of a third party submitted by Transnet or disclose or permit the disclosure of any personal information and the information of a third party to any third party without prior written consent from Transnet.

2.8. The Operator shall, at all times, ensure compliance with any applicable laws put in place and maintain sufficient measures, policies and systems to manage and secure against all forms of risks to any information that may be shared or accessed pursuant to the services offered to Transnet in terms of this Agreement (physically, through a computer or any other form of electronic communication).

2.9. The Operator shall notify Transnet in writing of any unauthorised access to personal information and the information of a third party, cybercrimes or suspected cybercrimes, in its knowledge and report such crimes or suspected crimes to the relevant authorities in accordance with applicable laws, after becoming aware of such crimes or suspected crime. The Operator must inform Transnet of the breach as soon as it has occurred to allow Transnet to take all necessary remedial steps to mitigate the extent of the loss or compromise of personal information and the information of a third party and to restore the integrity of the affected personal information as quickly as is possible.

2.10. Transnet may, in writing, request the Operator to confirm and/or make available any personal information and the information of a third party in its possession in relation to Transnet and if such personal information has been accessed by third parties and the identity thereof in terms of the POPIA.

2.11. Transnet may further request that the Operator correct, delete, destroy, withdraw consent or object to the processing of any personal information and the information of a third party relating to the Transnet or a third party in the Operator's s possession in terms of the provision of the POPIA and utilizing Form 2 of the POPIA Regulations.

2.12. In signing this addendum that is in terms of the POPIA, the Operator hereby agrees that it has adequate measures in place to provide protection of the personal information and the information of a third party given to it by Transnet in line with the 8 conditions of the POPIA and that it will provide to Transnet satisfactory evidence of these measures whenever called upon to do so by Transnet.

The Operator is required to provide confirmation that all measures in terms of the POPIA are in place when processing personal information and the information of a third party received from Transnet:

YES		NO	

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2.13. Further, the Operator acknowledges that it will be held liable by Transnet should it fail to process personal information in line with the requirements of the POPIA. The Operator will be subject to any civil or criminal action, administrative fines or other penalty or loss that may arise as a result of the processing of any personal information that Transnet submitted to it.

2.14. Should a Tenderer have any complaints or objections to processing of its personal information, by Transnet, the Tenderer can submit a complaint to the Information Regulator on https://www.justice.gov.za/inforeg/, click on contact us, click on complaints.IR@justice.gov.za

3. SOLE AGREEMENT

3.1. The Agreement, constitute the sole agreement between the parties relating to the subject matter referred to in paragraph 1.1 of this and no amendment/variation/change shall be of any force and effect unless reduced to writing and signed by or on behalf of both parties.

Signed at KLERKSDORP on this 18th day of November 2026

Name: TSHEPISO BOITUMELO MOREMI

Title: Managing Director

Signature: TBMoremi

BOKAMOSO DRAINAGE AND CIVILS **(Pty) Ltd**

(Operator)

Authorised signatory for and on behalf of BOKAMOSO DRAINAGE AND CIVILS (Pty) Ltd who warrants that he/she is duly authorised to sign this Agreement.

AS WITNESSES:

1. Name: _____ Signature: _____

2. Name: _____ Signature: _____

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T2.2-14: Certificate of Acquaintance with Tender Documents

NAME OF TENDERING ENTITY:
BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

1. By signing this certificate, I/we acknowledge that I/we have made myself/ourselves thoroughly familiar with, and agree with all the conditions governing this RFP. This includes those terms and conditions of the Contract, the Supplier Integrity Pact, Non-Disclosure Agreement etc. contained in any printed form stated to form part of the documents thereof, but not limited to those listed in this clause.

2. I/we furthermore agree that Transnet SOC Ltd shall recognise no claim from me/us for relief based on an allegation that I/we overlooked any tender/contract condition or failed to take it into account for the purpose of calculating my/our offered prices or otherwise.

3. I/we understand that the accompanying Tender will be disqualified if this Certificate is found not to be true and complete in every respect.

4. For the purposes of this Certificate and the accompanying Tender, I/we understand that the word "competitor" shall include any individual or organisation, other than the Tenderer, whether or not affiliated with the Tenderer, who:

   a) has been requested to submit a Tender in response to this Tender invitation;

   b) could potentially submit a Tender in response to this Tender invitation, based on their qualifications, abilities or experience; and

   c) provides the same Services as the Tenderer and/or is in the same line of business as the Tenderer

5. The Tenderer has arrived at the accompanying Tender independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium will not be construed as collusive Tendering.

6. In particular, without limiting the generality of paragraph 5 above, there has been no consultation, communication, agreement or arrangement with any competitor regarding:

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a) prices;

b) geographical area where Services will be rendered [market allocation]

c) methods, factors or formulas used to calculate prices;

d) the intention or decision to submit or not to submit, a Tender;

e) the submission of a tender which does not meet the specifications and conditions of the tender; or

f) Tendering with the intention not winning the tender.

7. In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications and conditions or delivery particulars of the Services to which this tender relates.

8. The terms of the accompanying tender have not been, and will not be, disclosed by the Tenderer, directly or indirectly, to any competitor, prior to the date and time of the official tender opening or of the awarding of the contract.

9. I/We am/are aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to tenders and contracts, tenders that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and/or may be reported to the National Prosecuting Authority [NPA] for criminal investigation. In addition, Tenderers that submit suspicious tenders may be restricted from conducting business with the public sector for a period not exceeding 10 [ten] years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

Signed on this 24th day of November 20 26

TBMoremi

SIGNATURE OF TENDERER

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T2.2-15: Supplier Code of Conduct

Transnet SOC Limited aims to achieve the best value for money when buying or selling goods and obtaining services. This however must be done in an open and fair manner that supports and drives a competitive economy. Underpinning our process are several acts and policies that any supplier dealing with Transnet must understand and support. These are:

- The Transnet Procurement Policy – A guide for Tenderers.
- Section 217 of the Constitution - the five pillars of Public PSCM (Procurement and Supply Chain Management): fair, equitable, transparent, competitive and cost effective;
- The Public Finance Management Act (PFMA);
- The Broad Based Black Economic Empowerment Act (BBBEE)
- The Prevention and Combating of Corrupt Activities Act (PRECCA); and
- The Construction Industry Development Board Act (CIDB Act).

This code of conduct has been included in this contract to formally appraise Transnet Suppliers of Transnet's expectations regarding behaviour and conduct of its Suppliers.

Prohibition of Bribes, Kickbacks, Unlawful Payments, and Other Corrupt Practices

Transnet is in the process of transforming itself into a self-sustaining State Owned Enterprise, actively competing in the logistics industry. Our aim is to become a world class, profitable, logistics organisation. As such, our transformation is focused on adopting a performance culture and to adopt behaviours that will enable this transformation.

1. ***Transnet SOC Limited will not participate in corrupt practices. Therefore, it expects its suppliers to act in a similar manner.***
    - Transnet and its employees will follow the laws of this country and keep accurate business records that reflect actual transactions with, and payments to, our suppliers.
    - Employees must not accept or request money or anything of value, directly or indirectly, from suppliers.
    - Employees may not receive anything that is calculated to:
        - Illegally influence their judgement or conduct or to ensure the desired outcome of a sourcing activity;

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- Win or retain business or to influence any act or decision of any person involved in sourcing decisions; or
- Gain an improper advantage.

- There may be times when a supplier is confronted with fraudulent or corrupt behaviour of Transnet employees. We expect our Suppliers to use our "Tip-offs Anonymous" Hot line to report these acts. (0800 003 056).

2. ***Transnet SOC Limited is firmly committed to the ideas of free and competitive enterprise.***

- Suppliers are expected to comply with all applicable laws and regulations regarding fair competition and antitrust practices.
- Transnet does not engage with non-value adding agents or representatives solely for the purpose of increasing BBBEE spend (fronting).

3. Transnet's relationship with suppliers requires us to clearly define requirements, to exchange information and share mutual benefits.

- Generally, suppliers have their own business standards and regulations. Although Transnet cannot control the actions of our suppliers, we will not tolerate any illegal activities. These include, but are not limited to:
  - Misrepresentation of their product (origin of manufacture, specifications, intellectual property rights, etc);
  - Collusion;
  - Failure to disclose accurate information required during the sourcing activity (ownership, financial situation, BBBEE status, etc.);
  - Corrupt activities listed above; and
  - Harassment, intimidation or other aggressive actions towards Transnet employees.
- Suppliers must be evaluated and approved before any materials, components, products or services are purchased from them. Rigorous due diligence is conducted and the supplier is expected to participate in an honest and straight forward manner.
- Suppliers must record and report facts accurately, honestly and objectively. Financial records must be accurate in all material respects.

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Conflicts of Interest

A conflict of interest arises when personal interests or activities influence (or appear to influence) the ability to act in the best interests of Transnet SOC Limited.

- Doing business with family members.
- Having a financial interest in another company in our industry

Where possible, contracts will be negotiated to include the above in the terms of such contracts. To the extent such terms are not included in contractual obligations and any of the above code is breached, then Transnet reserves its right to review doing business with these suppliers.

I, TSHEPISO BOITUMELO MOREMI of BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD

(insert name of Director or as per Authority Resolution from Board of Directors)

(insert name of Company)

hereby acknowledge having read, understood and agree to the terms and conditions set out in the "Transnet Supplier Code of Conduct."

Signed this on day 18th November 2026 at KLERKSDORP

TBMoremi

Signature

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C1.1: Form of Offer & Acceptance

Offer

The Employer, identified in the Acceptance signature block, has solicited offers to enter into a contract for the procurement of:

The Construction and Rehabilitation of Drainage Infrastructure at Leeubos Electrical Substation under the Krugersdorp Depot

The tenderer, identified in the Offer signature block, has examined the documents listed in the Tender Data and addenda thereto as listed in the Returnable Schedules, and by submitting this Offer has accepted the Conditions of Tender.

By the representative of the tenderer, deemed to be duly authorised, signing this part of this Form of Offer and Acceptance the tenderer offers to perform all of the obligations and liabilities of the *Contractor* under the contract including compliance with all its terms and conditions according to their true intent and meaning for an amount to be determined in accordance with the *conditions of contract* identified in the Contract Data.

The offered total of the Prices exclusive of VAT is	**R** 127 805.00
Value Added Tax @ 15% is	**R** 19 062.75
The offered total of the Prices inclusive of VAT is	**R** 146 147.75
(in words) ONE HUNDRED AND FORTY-SIX THOUSAND ONE HUNDRED AND SEVENTY-FOUR RAND AND SEVENTY-FIVE CENTS	

This Offer may be accepted by the Employer by signing the Acceptance part of this Form of Offer and Acceptance and returning one copy of this document including the Schedule of Deviations (if any) to the tenderer before the end of the period of validity stated in the Tender Data, or other period as agreed, whereupon the tenderer becomes the party named as the *Contractor* in the *conditions of contract* identified in the Contract Data.

Signature(s)

Name(s) TSHEPISO BOITUMELO MOREMI

Capacity Managing Director

For the tenderer: BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
27 Buffelsdoorn Road, Industria, Klerksdorp, 2571
(Insert name and address of organisation)

Name & signature of witness REFILWE MPHO KGOSI RMKgosi Date 18/11/2026

Tenderer's CIDB registration number: CRS 104-21873 (1CE PE)

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Acceptance

By signing this part of this Form of Offer and Acceptance, the *Employer* identified below accepts the tenderer's Offer. In consideration thereof, the *Employer* shall pay the *Contractor* the amount due in accordance with the *conditions of contract* identified in the Contract Data. Acceptance of the tenderer's Offer shall form an agreement between the *Employer* and the tenderer upon the terms and conditions contained in this agreement and in the contract that is the subject of this agreement.

The terms of the contract, are contained in:

Part C1 Acceptance)	Agreements and Contract Data, (which includes this Form of Offer and
Part C2	Pricing Data
Part C3	Scope of Work: Works Information
Part C4	Site Information

and drawings and documents (or parts thereof), which may be incorporated by reference into the above listed Parts.

Deviations from and amendments to the documents listed in the Tender Data and any addenda thereto listed in the Returnable Schedules as well as any changes to the terms of the Offer agreed by the tenderer and the Employer during this process of offer and acceptance, are contained in the Schedule of Deviations attached to and forming part of this Form of Offer and Acceptance. No amendments to or deviations from said documents are valid unless contained in this Schedule.

The tenderer shall within two weeks of receiving a completed copy of this agreement, including the Schedule of Deviations (if any), contact the Employer's Representative (whose details are given in the Contract Data) to arrange the delivery of any securities, bonds, guarantees, proof of insurance and any other documentation to be provided in terms of the *conditions of contract* identified in the Contract Data at, or just after, the date this agreement comes into effect. Failure to fulfil any of these obligations in accordance with those terms shall constitute a repudiation of this agreement.

Notwithstanding anything contained herein, this agreement comes into effect on the date when the tenderer receives one fully completed original copy of this document, including the Schedule of Deviations (if any).

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Unless the tenderer (now *Contractor*) within five working days of the date of such receipt notifies the Employer in writing of any reason why he cannot accept the contents of this agreement, this agreement shall constitute a binding contract between the Parties.

Signature(s)	.....	.....
Name(s)	.....	.....
Capacity	.....	.....
for the Employer	Transnet SOC Ltd	
	.....	
	(Insert name and address of organisation)	
Name & signature of witness	.....	Date .....

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Schedule of Deviations

Note:

1. To be completed by the Employer prior to award of contract. This part of the Offer & Acceptance would not be required if the contract has been developed by negotiation between the Parties and is not the result of a process of competitive tendering.
2. The extent of deviations from the tender documents issued by the Employer prior to the tender closing date is limited to those permitted in terms of the Conditions of Tender.
3. A tenderer's covering letter must not be included in the final contract document. Should any matter in such letter, which constitutes a deviation as aforesaid be the subject of agreement reached during the process of Offer and Acceptance, the outcome of such agreement shall be recorded here, and the final draft of the contract documents shall be revised to incorporate the effect of it.

No.	Subject	Details
1		
2		
3		
4		
5		

By the duly authorised representatives signing this Schedule of Deviations below, the Employer and the tenderer agree to and accept this Schedule of Deviations as the only deviations from and amendments to the documents listed in the Tender Data and any addenda thereto listed in the Tender Schedules, as well as any confirmation, clarification or changes to the terms of the Offer agreed by the tenderer and the Employer during this process of Offer and Acceptance.

It is expressly agreed that no other matter whether in writing, oral communication or implied during the period between the issue of the tender documents and the receipt by the tenderer of a completed signed copy of this Form shall have any meaning or effect in the contract between the parties arising from this Agreement.

	For the tenderer:	**For the Employer**
Signature	.....	.....
Name	.....	.....
Capacity	.....	.....
On behalf of	*(Insert name and address of organisation)*	Transnet SOC Ltd
Name & signature of witness	.....	.....
Date	.....	.....

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Schedule of Deviations

Note:

1. To be completed by the Employer prior to award of contract. This part of the Offer & Acceptance would not be required if the contract has been developed by negotiation between the Parties and is not the result of a process of competitive tendering.
2. The extent of deviations from the tender documents issued by the Employer prior to the tender closing date is limited to those permitted in terms of the Conditions of Tender.
3. A tenderer's covering letter must not be included in the final contract document. Should any matter in such letter, which constitutes a deviation as aforesaid be the subject of agreement reached during the process of Offer and Acceptance, the outcome of such agreement shall be recorded here, and the final draft of the contract documents shall be revised to incorporate the effect of it.

No.	Subject	Details
1		
2		
3		
4		
5		

By the duly authorised representatives signing this Schedule of Deviations below, the Employer and the tenderer agree to and accept this Schedule of Deviations as the only deviations from and amendments to the documents listed in the Tender Data and any addenda thereto listed in the Tender Schedules, as well as any confirmation, clarification or changes to the terms of the Offer agreed by the tenderer and the Employer during this process of Offer and Acceptance.

It is expressly agreed that no other matter whether in writing, oral communication or implied during the period between the issue of the tender documents and the receipt by the tenderer of a completed signed copy of this Form shall have any meaning or effect in the contract between the parties arising from this Agreement.

	For the tenderer:	**For the Employer**
Signature	.....	.....
Name	.....	.....
Capacity	.....	.....
On behalf of	*(Insert name and address of organisation)*	Transnet SOC Ltd
Name & signature of witness	.....	.....
Date	.....	.....

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C1.2 Contract Data

Part one - Data provided by the *Employer*

Clause	Statement	Data
1	**General**	
	The *conditions of contract* are the core clauses and the clauses for main Option	**B: Priced contract with bill of quantities**
	dispute resolution Option	**W1: Dispute resolution procedure**
	and secondary Options	**X2 Changes in the law** **X7: Delay damages** **X18: Limitation of liability** **Z: *Additional conditions of contract***
	of the NEC3 Engineering and Construction Contract June 2005 (amended June 2006 and April 2013)	
10.1	The *Employer* is:	**Transnet SOC Ltd** **(Registration No. 1990/000900/30)**
	Address	Registered address: **Transnet Corporate Centre** **96 Rissik Street** **Braamfontein** **Johannesburg** **2017**
	Having elected its Contractual Address for the purposes of this contract as:	**Transnet Rail Infrastructure Manager** **1 Station Road** **Krugersdorp, Millsite Depot** **1739**
10.1	The *Project Manager* is: (Name)	**Ncedisa Mashiyi**

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	Address	**1 Station Road Krugersdorp, Millsite Depot 1739**
	Tel	**011 950 1392**
	e-mail	**Ncedisa.Mashiyi@transnet.net**
10.1	The *Supervisor* is: (Name)	**Lebogang Marengwa**
	Address	**1 Station Road Krugersdorp, Millsite Depot 1739**
	Tel No.	**011 950 1393**
	e-mail	**lebogang.marengwa@transnet.net**
11.2(13)	The *works* are	**The Construction and Rehabilitation of Drainage Infrastructure at Leeubos Electrical Substation under the Krugersdorp Depot**
11.2(14)	The following matters will be included in the Risk Register	**1. Not Working on active railway line. 2. Not Working at heights. 3. No Access of unauthorised personnel to the project site i.e. members of community.**
11.2(15)	The *boundaries of the site* are	**As stated in Part C4.1." Description of the Site and its surroundings"**
11.2(16)	The Site Information is in	**Part C4**
11.2(19)	The Works Information is in	**Part C3**
12.2	The *law of the contract* is the law of	**the Republic of South Africa subject to the jurisdiction of the Courts of South Africa.**
13.1	The *language of this contract* is	**English**
13.3	The *period for reply* is	**2 weeks**
2	**The *Contractor*'s main responsibilities**	**No additional data is required for this section of the *conditions of contract*.**
3	**Time**	
11.2(3)	The *completion date* for the whole of the *works* is	**26 February 2027**
30.1	The *access dates* are	**Part of the Site** — **Date** **Leeubos Substation** — **20 January 2027**

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31.1	The *Contractor* is to submit a first programme for acceptance within	**2 weeks of the Contract Date.**
31.2	The *starting date* is	**20 January 2027**
32.2	The *Contractor* submits revised programmes at intervals no longer than	**1 week**
35.1	The *Employer* is not willing to take over the *works* before the Completion Date.	
4	**Testing and Defects**	
42.2	The *defects date* is	**Not applicable for these works**
43.2	The *defect correction period* is	**Zero (0) weeks**
5	**Payment**	
50.1	The *assessment interval* is monthly on the	**25th (twenty fifth) day of each successive month.**
51.1	The *currency of this contract* is the	**South African Rand.**
51.2	The period within which payments are made is	**Payment will be effected on or before the last day of the month following the month during which a valid Tax Invoice and Statement were received.**
51.4	The *interest rate* is	**the prime lending rate of Standard Bank of South Africa.**

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6	**Compensation events**	
60.1(13)	The *weather measurements* to be recorded for each calendar month are,	**the cumulative rainfall (mm)**
		the number of days with rainfall more than 10 mm
		the number of days with minimum air temperature less than 0 degrees Celsius
		the number of days with snow lying at 08:00 hours South African Time
		and these measurements: N/A
	The place where weather is to be recorded (on the Site) is:	**The *Contractor*'s Site establishment area**
	The *weather data* are the records of past *weather measurements* for each calendar month which were recorded at:	**Leeudoringstad**
	and which are available from:	**South African Weather Service 012 367 6023 or info3@weathersa.co.za.**
7	**Title**	**No additional data is required for this section of the *conditions of contract*.**
8	**Risks and insurance**	
80.1	These are additional *Employer*'s risks	**Nil**
84.1	The *Employer* provides these insurances from the Insurance Table	
	1 Insurance against:	**Loss of or damage to the *works*, Plant and Materials is as stated in the Insurance policy for Contract Works/ Public Liability.**
	Cover / indemnity:	**to the extent as stated in the insurance policy for Contract Works / Public Liability**

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	The deductibles are:	**as stated in the insurance policy for Contract Works / Public Liability**
2	Insurance against:	**Loss of or damage to property (except the *works*, Plant and Materials & Equipment) and liability for bodily injury to or death of a person (not an employee of the *Contractor)* arising out of or in connection with the performance of the Contract as stated in the insurance policy for Contract Works / Public Liability**
	Cover / indemnity	**Is to the extent as stated in the insurance policy for Contract Works / Public Liability**
	The deductibles are	**as stated in the insurance policy for Contract Works / Public Liability**
3	Insurance against:	**Loss of or damage to Equipment (Temporary Works only) as stated in the insurance policy for contract Works and Public Liability**
	Cover / indemnity	**Is to the extent as stated in the insurance policy for Contract Works / Public Liability**
	The deductibles are:	**As stated in the insurance policy for Contract Works / Public Liability**
4	Insurance against:	**Contract Works SASRIA insurance subject to the terms, exceptions and conditions of the SASRIA coupon**
	Cover / indemnity	**Cover / indemnity is to the extent provided by the SASRIA coupon**
	The deductibles are	**The deductibles are, in respect of each and every theft claim, 0,1% of the contract value subject to a minimum of R2,500 and a maximum of R25,000.**
	Note:	**The deductibles for the insurance as stated above are listed in the document titled "Certificate of Insurance: Transnet (SOC) Limited Principal Controlled Insurance."**

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84.1	The minimum limit of indemnity for insurance in respect of death of or bodily injury to employees of the *Contractor* arising out of and in the course of their employment in connection with this contract for any one event is	**The *Contractor* must comply at a minimum with the provisions of the Compensation for Occupational Injuries and Diseases Act No. 130 of 1993 as amended.**
	The *Contractor* provides these additional Insurances	**1 Where the contract requires that the design of any part of the *works* shall be provided by the *Contractor* the *Contractor* shall satisfy the *Employer* that professional indemnity insurance cover in connection therewith has been affected** **2 Where the contract involves manufacture, and/or fabrication of Plant & Materials, components or other goods to be incorporated into the *works* at premises other than the site, the *Contractor* shall satisfy the *Employer* that such plant & materials, components or other goods for incorporation in the *works* are adequately insured during manufacture and/or fabrication and transportation to the site.** **3 Should the *Employer* have an insurable interest in such items during manufacture, and/or fabrication, such interest shall be noted by endorsement to the *Contractor's* policies of insurance as well as those of any sub-contractor** **4 Motor Vehicle Liability Insurance comprising (as a minimum) "Balance of Third Party" Risks including Passenger and Unauthorised Passenger Liability indemnity with a minimum indemnity limit of R5,000,000.**

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		5 The insurance coverage referred to in 1, 2, 3, 4, above shall be obtained from an insurer(s) in terms of an insurance policy approved by the *Employer*. The *Contractor* shall arrange with the insurer to submit to the *Project Manager* the original and the duplicate original of the policy or policies of insurance and the receipts for payment of current premiums, together with a certificate from the insurer or insurance broker concerned, confirming that the policy or policies provide the full coverage as required. The original policy will be returned to the *Contractor.*
84.2	The minimum limit of indemnity for insurance in respect of loss of or damage to property (except the works, Plant, Materials and Equipment) and liability for bodily injury to or death of a person (not an employee of the *Contractor*) caused by activity in connection with this contract for any one event is	**Whatever the *Contractor* requires in addition to the amount of insurance taken out by the *Employer* for the same risk.**
84.2	The insurance against loss of or damage to the works, Plant and Materials as stated in the insurance policy for contract works and public liability selected from:	**Principal Controlled Insurance policy for Contract**
9	**Termination**	**There is no additional Contract Data required for this section of the *conditions of contract*.**
10	**Data for main Option clause**	
B	**Priced contract with Bill of Quantities**	**No additional data is required for this Option.**
60.6	The *method of measurement* is	**The Bill of Quantities have been measured in accordance with SANS 1200 unless indicated otherwise.**

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11	**Data for Option W1**	
W1.1	The *Adjudicator* is	**Both parties will agree as and when a dispute arises. If the parties cannot reach an agreement on the *Adjudicator*, the Chairman of the Association of Arbitrators will appoint an *Adjudicator*.**
W1.2(3)	The *Adjudicator nominating body* is:	**The Chairman of the Association of Arbitrators (Southern Africa)**
	If no *Adjudicator nominating body* is entered, it is:	**the Association of Arbitrators (Southern Africa)**
W1.4(2)	The *tribunal* is:	**Arbitration**
W1.4(5)	The *arbitration procedure* is	**The Rules for the Conduct of Arbitrations of the Association of Arbitrators (Southern Africa)**
	The place where arbitration is to be held is	**Johannesburg, South Africa**
	The person or organisation who will choose an arbitrator - if the Parties cannot agree a choice or - if the arbitration procedure does not state who selects an arbitrator, is	**The Chairman of the Association of Arbitrators (Southern Africa)**
12	**Data for secondary Option clauses**	
X2	**Changes in the law**	**No additional data is required for this Option**
X7	**Delay damages**	
X7.1	Delay damages for Completion of the whole of the *works* are	**R750.00 per day of delay**
X18	**Limitation of liability**	

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X18.1	The *Contractor*'s liability to the *Employer* for indirect or consequential loss is limited to:	**Nil**
X18.2	For any one event, the *Contractor's* liability to the *Employer* for loss of or damage to the *Employer's* property is limited to:	**The deductible of the relevant insurance policy**
X18.3	The *Contractor's* liability for Defects due to his design which are not listed on the Defects Certificate is limited to:	**The cost of correcting the Defect**
X18.4	The *Contractor's* total liability to the *Employer* for all matters arising under or in connection with this contract, other than excluded matters, is limited to:	**The Total of the Prices**
X18.5	The *end of liability date* is	**Not applicable for the *works***
Z	***Additional conditions of contract* are*:***	
Z1	**Additional clauses relating to Joint Venture**	**Insert the additional core clause 27.5**
Z1.1		**27.5. In the instance that the *Contractor* is a joint venture, the *Contractor* shall provide the *Employer* with a certified copy of its signed joint venture agreement, and in the instance that the joint venture is an 'Incorporated Joint Venture,' the Memorandum of Incorporation, within 4 (four) weeks of the Contract Date.** **The Joint Venture agreement shall contain but not be limited to the following:**

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- **A brief description of the Contract and the Deliverables;**
- **The name, physical address, communications addresses and domicilium citandi et executandi of each of the constituents and of the Joint Venture;**
- **The constituent's interests;**
- **A schedule of the insurance policies, sureties, indemnities and guarantees which must be taken out by the Joint Venture and by the individual constituents;**
- **Details of an internal dispute resolution procedure;**
- **Written confirmation by all of the constituents:**

- **of their joint and several liabilities to the *Employer* to Provide the Works;**
- **identification of the lead partner in the joint venture confirming the authority of the lead partner to bind the joint venture through the *Contractor's* representative;**
- **Identification of the roles and responsibilities of the constituents to provide the Works.**
-

- **Financial requirements for the Joint Venture:**
  i. **the working capital requirements for the Joint Venture and the extent to which and manner whereby this will be provided and/or guaranteed by the constituents from time to time;**
- **the names of the auditors and others, if any, who will provide auditing and accounting services to the Joint Venture.**

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Z1.2		**Insert additional core clause 27.6** **27.6. The *Contractor* shall not alter its composition or legal status of the Joint Venture without the prior approval of the *Employer.***
Z2	**Additional obligations in respect of Termination**	
Z2.1		**The following will be included under core clause 91.1:** **In the second main bullet, after the word 'partnership' add 'joint venture whether incorporate or otherwise (including any constituent of the joint venture)' and** **Under the second main bullet, insert the following additional bullets after the last sub-bullet:** • **commenced business rescue proceedings (R22)** • **repudiated this Contract (R23)**
Z2.2	**Termination Table**	**The following will be included under core clause 90.2 Termination Table as follows:** **Amend "A reason other than R1 – R21" to "A reason other than R1 – R23"**
Z2.3		**Amend "R1 – R15 or R18" to "R1 – R15, R18, R22 or R23."**
Z3	**Right Reserved by the *Employer* to Conduct Vetting through SSA**	

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Z3.1		**The *Employer* reserves the right to conduct vetting through State Security Agency (SSA) for security clearances of any *Contractor* who has access to National Key Points for the following without limitations:** **1. Confidential – this clearance is based on any information which may be used by malicious, opposing or hostile elements to harm the objectives and functions of an organ of state.** **2. Secret – clearance is based on any information which may be used by malicious, opposing or hostile elements to disrupt the objectives and functions of an organ of state.** **3. Top Secret – this clearance is based on information which may be used by malicious, opposing or hostile elements to neutralise the objectives and functions of an organ of state.**
Z4	**Additional Clause Relating to Collusion in the Construction Industry**	
Z4.1		**The contract award is made without prejudice to any rights the *Employer* may have to take appropriate action later with regard to any declared tender rigging including blacklisting.**
Z5	**Protection of Personal Information Act**	
Z5.1		**The *Employer* and the *Contractor* are required to process information obtained for the duration of the Agreement in a manner that is aligned to the Protection of Personal Information Act.**

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C1.2 Contract Data

Part two - Data provided by the *Contractor*

The tendering *Contractor* is advised to read both the NEC3 Engineering and Construction Contract - June 2005 (with amendments June 2006 and April 2013) and the relevant parts of its Guidance Notes (ECC3-GN) in order to understand the implications of this Data which the tenderer is required to complete. An example of the completed Data is provided on pages 156 to 158 of the ECC3 Guidance Notes.

Completion of the data in full, according to Options chosen, is essential to create a complete contract.

Clause	Statement	Data
10.1	The *Contractor* is (Name):	BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD
	Address	27 Buffelsdoorn Road, Industria, Klerksdorp, 2571
	Tel No.	018 462 3304
	Fax No.	086 512 7781
11.2(8)	The *direct fee percentage* is	12 **%**
	The *subcontracted fee percentage* is	8 **%**
24.1	The *Contractor's* key persons are:	
	1 Name:	LESEGO THABO SEEPE
	Job:	Contracts Manager / Site Agent
	Responsibilities:	Site management, programme, quality, liaison with PM
	Qualifications:	National Diploma: Civil Engineering (NQF 6)
	Experience:	4 years: stormwater, culverts and minor roads
	2 Name:	KATLEGO JOHANNES DIKGALE
	Job	Foreman
	Responsibilities:	Daily supervision of labour, plant and site safety
	Qualifications:	National Certificate: Construction Supervision (NQF 4)
	Experience:	12 years: drainage, kerbing and concrete works
		CV's (and further key persons data including CVs) are appended to Tender Schedule entitled. Key Personnel CVs (after C1.2)

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B	**Priced contract with bill of quantities**	
11.2(21)	The *bill of quantities* is in	**Part C2 Pricing Data**
11.2(31)	The tendered total of the Prices is	R 146 147.75 ..... (in figures) ONE HUNDRED AND TWENTY-SEVEN THOUSAND AND EIGHTY-FIVE RAND ONLY (in words), excluding VAT

B	**Priced contract with bill of quantities**	**Data for the Shorter Schedule of Cost Components**		
41 in SSCC	The percentage for people overheads is:	40 **%**		
21 in SSCC	The published list of Equipment is the last edition of the list published by	SAFCEC Schedule of Dayworks (latest edition)		
	The percentage for adjustment for Equipment in the published list is	- 10 **%** (state plus or minus)		
22 in SSCC	The rates of other Equipment are:	**Equipment**	**Size or capacity**	**Rate**
		TLB 4x4 (Bell 315SK)	70 kW	R 560.00/h
		Tipper truck	6 m3	R 520.00/h
		Plate compactor	500 kg	R 95.00/h
		Concrete mixer	350 l	R 65.00/h
61 in SSCC	The hourly rates for Defined Cost of design outside the Working Areas are	**Category of employee**		**Hourly rate**
		N/A - no design by Contractor		N/A
62 in SSCC	The percentage for design overheads is	**%** N/A		
63 in SSCC	The categories of design employees whose travelling expenses to and from the Working Areas are included in Defined Cost are:	N/A - no design in this contract		

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CURRICULUM VITAE - KEY PERSON 1

BOKAMOSO DRAINAGE AND CIVILS (PTY) LTD - RFQ TRIM/2026/09/2227/11458/RFQ

Name	LESEGO THABO SEEPE
ID number	9302215217085
Date of birth	21 February 1993
Position on contract	Contracts Manager / Site Agent
Qualification	National Diploma: Civil Engineering (NQF 6)
Experience	9 years: stormwater, culverts and minor roads

Employment history

2016-2019	Site Technician, Mooi River Civils (fictional)
2019-date	Operations Director / Contracts Manager, Bokamoso Drainage and Civils

Relevant projects

Construction of concrete-lined stormwater channels and 300 mm pipe culverts, Jouberton Ext 21 - Matlosana-West Local Municipality (fictional) (2024)

Rehabilitation of road-side V-drains and 450 mm culvert crossings, Road D412 - Bophirima Roads Agency (fictional) (2024)

I certify that this CV correctly describes me, my qualifications and my experience.

LTSeepe

LESEGO THABO SEEPE Date: 18/11/2026

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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VAAL CENTRAL UNIVERSITY OF TECHNOLOGY (FICTIONAL)

Certificate - certified copy (specimen layout)

Awarded to	LESEGO THABO SEEPE
ID number	9302215217085
Qualification	National Diploma: Civil Engineering (NQF 6)
Date	2015
Certificate number	QC-11156

CERTIFIED A TRUE COPY
OF THE ORIGINAL
COMMISSIONER OF OATHS
N.P. MOLOI - ATTORNEY (FICTIONAL)
DATE: 10/11/2026
NPMoloi

SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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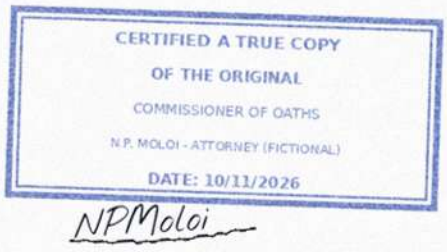
BOKONE CONSTRUCTION COLLEGE (FICTIONAL)

Certificate - certified copy (specimen layout)

Awarded to	KATLEGO JOHANNES DIKGALE
ID number	8709145129084
Qualification	National Certificate: Construction Supervision (NQF 4)
Date	2013
Certificate number	QC-51122



SPECIMEN - FICTIONAL TEST DOCUMENT - NOT VALID

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PART C2: PRICING DATA

Document reference	Title	No of pages
	Cover Page	1
C2.1	Pricing instructions: Option B	2
C2.2	The *Bill of Quantities*	7

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C2.1 Pricing instructions: Option B

1. The *conditions of contract*

1.1. How the contract prices work and assesses it for progress payments

Clause 11 in NEC3 Engineering and Construction Contract, June 2005 and 2013 (ECC) Option B states:

Identified and defined terms	11	
	11.2	(21) The Bill of Quantities is the *bill of quantities* as changed in accordance with this contract to accommodate implemented compensation events and for accepted quotations for acceleration. (22) Defined Cost is the cost of the components in the Shorter Schedule of Cost Components whether work is subcontracted or not excluding the cost of preparing quotations for compensation events. (28) The Price for Work Done to Date is the total of • the quantity of the work which the *Contractor* has completed for each item in the Bill of Quantities multiplied by the rate and • a proportion of each lump sum which is the proportion of the work covered by the item which the *Contractor* has completed. Completed work is work without Defects which would either delay or be covered by immediately following work. (31) The Prices are the lump sums and the amounts obtained by multiplying the rates by the quantities for the items in the Bill of Quantities.

This confirms that Option B is a re-measurement contract and the bill comprises only items measured using quantities and rates or stated as lump sums. Value related items are not used. Time related items are items measured using rates where the rate is a unit of time.

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1.2. Function of the Bill of Quantities

Clause 55.1 in Option B states, "Information in the Bill of Quantities is not Works Information or Site Information". This confirms that instructions to do work or how it is to be done are not included in the Bill, but in the Works Information. This is further confirmed by Clause 20.1 which states, "The *Contractor* Provides the Works in accordance with the Works Information". Hence the *Contractor* does **not** Provide the Works in accordance with the Bill of Quantities. The Bill of Quantities is only a pricing document.

1.3. Guidance before pricing and measuring

Employers preparing tenders or contract documents, and tendering contractors are advised to consult the sections dealing with the bill of quantities in the NEC3 Engineering and Construction Contract (June 2005) Guidance Notes before preparing the *bill of quantities* or before entering rates and lump sums into the *bill*.

Historically bill of quantities-based contracts in South Africa have been influenced by the different approaches of the civil engineering and building sectors of the industry through their respective discipline based standard forms of contract and methods of measurement. This is particularly apparent in the approach to the Preliminary and General bill. On the other hand, because ECC caters for a number of disciplines in the same contract, including electrical works, a different approach not currently found in local methods of measurement to the Preliminary & General bill items may have been used.

The NEC approach to the P & G bill assumes use will be made of method related charges for Equipment applied to Providing the Works based on durations shown in the Accepted Programme, fixed charges for the use of Equipment that is required throughout the construction phase, time related charges for people working in a supervisory capacity for the period required, and lump sum charges for other facilities or services not directly related to performing work items typically included in other parts of the bill.

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2. Measurement and payment

2.1. Symbols

The units of measurement described in the Bill of Quantities are metric units abbreviated as follows:

Abbreviation	Unit
%	percent
h	hour
ha	hectare
kg	kilogram
kl	kilolitre
km	kilometre
km-pass	kilometre-pass
kPa	kilopascal
kW	kilowatt
l	litre
m	metre
mm	millimetre
m^2	square metre
m^2-pass	square metre pass
m^3	cubic metre
m^3-km	cubic metre-kilometre
MN	meganewton
MN.m	meganewton-metre

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MPa	megapascal
No.	number
Prov sum[1]	provisional sum
PC-sum	prime cost sum
R/only	Rate only
sum	Lump sum
t	ton (1000kg)
W/day	Work day

2.2. General assumptions

2.2.1. Unless otherwise stated, items are measured net in accordance with the drawings, and no allowance has been made in the quantities for waste.

2.2.2. The Prices and rates stated for each item in the Bill of Quantities shall be treated as being fully inclusive of all work, risks, liabilities, obligations, overheads, profit and everything necessary as incurred or required by the *Contractor* in carrying out or providing that item.

2.2.3. Clause 63.13 in Option B provides that these rates and Prices may be used as a basis for assessment of compensation events instead of Defined Cost.

2.2.4. Where this contract requires detailed drawings, designs or other information to be provided, and no rates or prices are included in the *bill* specifically for such matters, then the *Contractor* is deemed to have allowed for all costs associated with such requirements within the tendered rates and Prices in the Bill of Quantities.

2.2.5. An item against which no Price is entered will be treated as covered by other Prices or rates in the *bill of quantities*. If a number of items are grouped together for pricing purposes, this will be treated as a single lump sum.

[1] Provisional Sums should not be used unless absolutely unavoidable. Rather include specifications and associated bill items for the most likely scope of work, and then change later using the compensation event procedure if necessary. This is because tenderers cannot programme effectively for unknown scopes of work

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2.2.6. The quantities contained in the Bill of Quantities may not be final and do not necessarily represent the actual amount of work to be done. The quantities of work assessed and certified for payment by the *Project Manager* at each assessment date will be used for determining payments due and not the quantities given in the Bill of Quantities.

2.2.7. The short descriptions of the items of payment given in the *bill of quantities* are only for the purposes of identifying the items. More detail regarding the extent of the work entailed under each item is provided in the Works Information.

2.3. Departures from the *method of measurement*

N/A

2.4. Amplification of or assumptions about measurement items

N/A

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PART C2.2: BILL OF QUANTITIES

Bidders to note that all pricing must be fully completed in the e-supplier portal, electronic pricing. No paper pricing schedule will be accepted.

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BILL OF QUANTITIES

Construction of New V-Drain and 200 mm Concrete Pipe Culvert

Project Construction of New V-Drain and Pipe Culvert
V-Drain Length 280 m
V-Drain Width 1.5 m
V-Drain Depth 0.2 m
Culvert 200 mm diameter concrete pipe, 6 m long

Item	Description	Unit	Quantity	Rate (R)	Amount (R)
A	**PRELIMINARY AND GENERAL**				
A1	Site establishment, mobilisation and demobilisation	Sum	1	18 500.00	18 500.00
A2	Setting out and survey of drainage works	Sum	1	8 400.00	8 400.00
A3	Provision of temporary works, barricading and safety measures	Sum	1	9 650.00	9 650.00
A4	Site clearing and removal of minor vegetation along drainage route	m²	420		
B	**CONSTRUCTION OF NEW V-DRAIN**				
B1	Excavate and shape formation for new V-drain, including trimming, level and profile	m³	42	285.00	11 790.00
B2	Load, haul and dispose of surplus unsuitable excavated material	m³	42	240.00	10 080.00
B3	Prepare, compact and trim V-drain subgrade	m²	420	42.00	17 640.00
C	**CONSTRUCTION / INSTALLATION OF 200 mm DIAMETER PIPE CULVERT**				
C1	Excavate trench for 200 mm diameter pipe culvert, including trimming and preparation of trench bottom	m³	1.8	450.00	810.00
C2	Supply and place approved bedding material beneath pipe	m³	0.3	1 250.00	3 750.00
C3	Supply and install 200 mm diameter concrete pipe culvert	m	6	1 480.00	8 880.00
C4	Jointing and sealing of concrete pipes	m	6	185.00	1 110.00
C5	Selected backfill around and over pipe, placed and compacted in layers	m³	1.5	520.00	780.00
C6	Connect V-drain to culvert inlet and outlet, including concrete transition works	No.	2	6 850.00	13 700.00
D	**REINSTATEMENT AND COMPLETION**				
D1	Reinstatement of disturbed ground adjacent to drainage works	m²	420	16.00	6 720.00
D2	Removal of excess construction material and final site cleaning	Sum	1	6 200.00	6 200.00
D3	Final inspection, testing and completion of drainage works	Sum	1	4 500.00	4 500.00
SUMMARY					
A	Preliminary and General				44 320.00
B	New V-Drain				39 690.00
C	200 mm Concrete Pipe Culvert				26 655.00
D	Reinstatement and Completion				17 420.00
	SUBTOTAL				127 085.00
	Contingency (if applicable)				0.00
	SUBTOTAL BEFORE VAT				127 085.00
	VAT @ 15%				17 791.90
	GRAND TOTAL				146 147.75

PART C3: SCOPE OF WORK

Document reference	Title	No of page
	This cover page	1
C3.1	Employer's Works Information	2 - 4
	Total number of pages	**2**

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SCOPE OF WORK

Construction of New V-Drain and 200 mm Concrete Pipe Culvert

Project Scope and Technical Requirements

1. PROJECT DESCRIPTION

The work comprises the construction of a new unlined V-drain approximately 280 metres long, together with the installation of a 6 metre long, 200 mm diameter concrete pipe culvert. The purpose of the works is to provide a defined and durable stormwater drainage route and to convey runoff safely through the required crossing.

2. PRINCIPAL DIMENSIONS

Description	Requirement	Unit
V-drain length	280	m
V-drain top width	1.5	m
V-drain depth	0.2	m
Pipe culvert length	6	m
Pipe culvert diameter	200	mm

3. SCOPE OF WORKS

3.1 Site Establishment, Setting Out and Preparation

- Mobilise labour, plant, equipment, materials and supervision necessary to complete the works.
- Establish the working area and provide appropriate barricading, warning signs and safety measures.
- Set out the drainage alignment, levels, dimensions and culvert location in accordance with the approved design and site instructions.
- Clear minor vegetation, debris and obstructions within the work area as required.
- Protect existing services, structures, roads, accessways and other infrastructure that may be affected by the works.

3.2 Construction of New V-Drain

- Excavate the new V-drain along the approved 280 m alignment to the required line, level, width and depth.
- Trim and shape the excavation to form the required V-profile and remove loose, unsuitable or unstable material.
- Load, haul and dispose of surplus or unsuitable excavated material at an approved disposal location.
- Prepare, water and compact the drain formation/subgrade to achieve a firm and uniform foundation.
- Provide and place approved bedding or subbase material where required by the design or site conditions.
- Construct the unlined V-drain to the specified profile and thickness.
- Ensure the finished drain has a continuous fall and smooth hydraulic profile without local depressions, obstructions or ponding points.

3.3 Construction / Installation of 200 mm Concrete Pipe Culvert

- Set out the culvert alignment, inlet and outlet locations and invert levels.
- Excavate the culvert trench to the required depth and width, including trimming and preparation of the trench bottom.
- Remove unsuitable material and replace it with approved material where necessary.
- Supply and place approved bedding material to provide a uniform and stable foundation.
- Supply and install 200 mm diameter concrete pipe culvert for a total length of 6 m.

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- Ensure pipes are correctly aligned, levelled and supported throughout their length.
- Joint and seal the pipes in accordance with the pipe manufacturer's requirements and the approved construction method.
- Backfill around and over the pipe using approved selected material, compacted in suitable layers without damaging the pipe.
- Construct inlet and outlet headwalls, end protection or other erosion-control measures where indicated by the design.
- Connect the V-drain to the culvert inlet and outlet with suitable concrete transition works to provide a smooth flow path.

3.4 Reinstatement and Completion

- Reinstate disturbed areas adjacent to the drainage works.
- Remove surplus materials, rubble, spoil and construction waste from the site.
- Make good any damage caused by the contractor's operations.
- Clean the completed drain and culvert and ensure that all flow paths are unobstructed.
- Carry out final inspection and rectify defects identified before handover.

4. MATERIALS

- Concrete shall comply with the specified strength, durability and workmanship requirements in the approved project specification.
- Concrete pipe shall be suitable for drainage/culvert applications and comply with the applicable South African Standard or project specification.
- Bedding and backfill materials shall be approved and suitable for the intended application.
- Jointing and sealing materials shall be compatible with the concrete pipes and suitable for stormwater drainage conditions.
- All materials shall be new, sound and approved by the Engineer/Employer's Representative before incorporation into the works.

5. PLANT, EQUIPMENT AND LABOUR

The Contractor shall provide all plant, equipment, tools, labour and supervision required to complete the works safely and to the required standard. Expected equipment may include an excavator/backhoe, tipper truck, compaction equipment, concrete mixer or ready-mix supply, concrete finishing tools, surveying equipment and suitable lifting/handling equipment for the pipes.

6. QUALITY CONTROL AND INSPECTION

- Verify the drainage alignment, dimensions and levels before concrete placement.
- Inspect the prepared formation and bedding before proceeding with subsequent work.
- Control concrete quality, placement, finishing and curing in accordance with the approved specification.
- Check the pipe culvert for correct line, level, gradient, jointing and adequate bedding.
- Ensure backfill is placed and compacted to the specified requirements.
- The Employer/Engineer may inspect the works at any stage and require defective or non-conforming work to be corrected at the Contractor's cost.

7. HEALTH, SAFETY AND ENVIRONMENT

- Comply with all applicable occupational health and safety legislation and the project's health and safety requirements.
- Provide appropriate personal protective equipment to all personnel.

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- Maintain safe access around excavations and provide suitable barricading and warning signage.
- Take precautions to prevent collapse of excavations and protect workers from plant and traffic.
- Prevent concrete washout, spoil, fuel, oils and other pollutants from entering the drainage system or surrounding environment.
- Keep the site clean and remove waste to approved disposal facilities.

8. MEASUREMENT AND PAYMENT

Measurement and payment shall be in accordance with the approved Bill of Quantities. Rates shall be deemed to include all labour, materials, plant, equipment, transport, handling, setting out, temporary works, wastage, testing, finishing, curing, protection, clean-up and all incidental work necessary to complete each item.

9. PRELIMINARY QUANTITY BASIS

The quantities contained in the accompanying BOQ are preliminary and shall be verified against the approved construction drawings and actual site conditions before construction. In particular, the final concrete quantity for the V-drain shall be based on the actual V-profile and specified concrete lining thickness. Culvert excavation, bedding, backfill and headwall quantities shall be confirmed after the culvert invert level and site conditions have been established.

10. COMPLETION AND HANDOVER

- Complete all works in accordance with the approved drawings, BOQ, specifications and instructions.
- Remove temporary works and construction debris unless otherwise instructed.
- Demonstrate that the V-drain and culvert provide an unobstructed drainage path.
- Rectify defects identified during final inspection.
- Hand over the completed works in a clean, safe and serviceable condition.

11. CONTRACTOR'S RESPONSIBILITY

The Contractor shall satisfy itself as to the site conditions, access, existing services, levels, quantities and practical requirements before commencing the works. Any discrepancy between the BOQ, drawings, specifications and actual site conditions shall be brought to the attention of the Employer/Engineer before proceeding with affected work.

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PART C4: SITE INFORMATION

Document reference	Title	No of pages
	This cover page	1
	Site Information	2
	Total number of pages	**2**

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PART 4: SITE INFORMATION

Core clause 11.2(16) states

"Site Information is information which describes the Site and its surroundings and is in the documents which the Contract Data states it is in."

In Contract Data, reference has been made to this Part 4 of the contract for the location of Site Information.

1. Description of the Site and its surroundings

1.1. General description

The site is located within the railway vicinity in Leeubos area, adjacent to the R502 between Orkney and Leeudoringstad in the Northwest Province, with GPS coordinates: (27º12'12.80" S 26º18'28.55" E).

1.2. Existing buildings, structures, and plant & machinery on the Site

The site is in the railway vicinity, and safe working distances are to be always maintained.
The railway line is operational, and the construction work is to be conducted in such a way so as not to disrupt movement of trains. The *Contractor* shall allow for working under these conditions.
Access to areas adjacent to the construction site shall be always maintained.

1.3. Hidden services

It is the responsibility of the *Contractor* to detect and protect the existing services. The *Contractor* shall liaise with the *Project Manager* in this regard.

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